FRANCHISE AGREEMENT

FOR

MERCURE AMBASSADOR SEOUL DONGDAEMUN

BETWEEN

KORAMCO URBAN HOTEL GENERAL PRIVATE REAL ESTATE INVESTMENT COMPANY NO. 1 (AS FRANCHISEE)

AND

AA KOREA HOTEL MANAGEMENT CO., LTD

(AS FRANCHISOR)

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SCHEDULE OF COMMERCIAL TERMS

PARTIES	
Franchisor	**AA Korea Hotel Management Co., Ltd** Address:297, Dongho-ro (Jangchung-dong 2ga), Jung-gu, Seoul, Republic of Korea ("**Korea**") Email: General.Counsel.APAC@accor.com Attention: General Counsel
Franchisee	**Koramco Urban Hotel General Private Real Estate Investment Company No. 1** Address: 2F, 511, Samseong-Ro, Gangnam-Gu, Seoul, Korea Email Address: kanghee.lee@koramcofund.co.kr Attention: Corporate Director
HOTEL DETAILS	
Hotel	a collective term for the Facilities and all FF&E, operating supplies and inventories situated on the Land.
Facilities	(a) 336 guest rooms; (b) all day dining restaurant (subject to operating hours); (c) lounge bar; (d) gym; (e) laundry room; (f) meeting space; (g) business corner; and (h) car parking for approximately 16 cars.
Land	the land parcels with a total area of 1,025.2 square metres, located at 19-29, Eulji-ro 5-ga and 131-1 and 131-5, Bangsan-dong, Jung-gu Seoul, Korea, as shown in the plan attached as Schedule 4.
Interest Held	The Franchisee owns the Hotel and Land.
Mortgages	(a) First priority mortgage over the Land and the Hotel in favor of the Franchisee's senior lenders, including Industrial Bank of Korea, with a maximum secured amount of KRW 102,000,000,000; and (b) Second priority mortgage over the Land and the Hotel in favor of the Franchisee's subordinated lenders (i.e., DB Savings Bank Co. Ltd. and OK Savings Bank Co., Ltd.) with a maximum secured amount of KRW 19,200,000,000.
NAMES	
Brand	Mercure
Hotel Name	Mercure Ambassador Seoul Dongdaemun
DATES AND PERIODS	
Term	the period commencing on the Commencement Date and ending on the Termination Date.
Commencement Date	the date determined by the Franchisor, which will be the date when the Conditions Precedent are satisfied.
Expiry Date	the later of the last day of: (a) the Initial Term; and (b) any Renewal Term.
Termination Date	the earlier of the: (a) Expiry Date; and (b) date of earlier termination of this Agreement in accordance with its terms.
Initial Term	the period commencing from the Commencement Date and ending on the fifteenth (15th) anniversary of the Commencement Date.
Renewal Term	the First Renewal Term and the Second Renewal Term.
First Renewal Term	if either Party does not serve a written notice of non-renewal to the other Party at least twelve (12) months prior to the last day of the Initial Term, the period commencing on the day after the last day of the Initial Term and ending on the fifth (5th) anniversary of the day after the last day of the Initial Term.

Second Renewal Term	if either Party does not serve a written notice of non-renewal to the other Party at least twelve (12) months prior to the last day of the First Renewal Term, the period commencing on the day after the last day of the First Renewal Term and ending on the fifth (5th) anniversary of the day after the last day of the First Renewal Term.
FRANCHISE FEES	
Establishment Fee	Nil.
Franchise Support Fee	3.0% of Total Rooms Revenue.
Currency	Korean Republic Won
SYSTEM FEES	
Sales & Marketing Fee	1.0% of Total Rooms Revenue.
Reservation Fees	For reservations made through the following channels: • **Direct Web:** 3.5% of Booked Revenue • **OTA:** 3.5% of Booked Revenue • **GDS/IDS:** 2.0% of Booked Revenue and € 5 per booking generated by these channels • **Call Centres:** 2.0% of Booked Revenue and € 5 per booking generated by these channels • **Group Bookings**: the then current applicable rate **In addition to the above fees:** • **Paid Search and Metasearch:** 10% of Booked Revenue • **Cluster Service & Overflow** is an additional group service and attracts a separate fee at the prevailing rate offered by the Call Centres.
Loyalty Program Fee	(a) 4.5% of the amount paid by the Loyalty Program member for eligible expenses related to their stay at the Hotel; and (b) 2.0% of the eligible expenses paid by the Loyalty Program member directly at the outlet (and not charged to the room) for non-accommodation services (including restaurants and bars) at the Hotel, subject to and in accordance with the terms and conditions of the Loyalty Program.
MILESTONES AND MILESTONE DATES	
Milestones	**Milestone Dates**
Works Commencement Date	Last date for Works Commencement Date – as at the Execution Date, the Works have commenced.
Practical Completion	Last date for Practical Completion - 15 June 2026.
Commencement Date	Last date for Commencement Date - 31 July 2026.

THIS AGREEMENT is made the day of 2026

Parties

The party named as the Franchisor in the Schedule of Commercial Terms ("**Franchisor**"); and

The party named as the Franchisee in the Schedule of Commercial Terms ("**Franchisee**").

(referred to collectively as "**the Parties**" and individually as a "**Party**".)

Purpose

(a) Accor Group has developed the System which the Franchisor has the right to use and to license to third parties in the Territory.

(b) The Franchisee wishes to obtain the right to operate the Hotel utilising the System and the Franchisor has agreed to grant such right, subject to the terms and conditions contained under this Agreement.

1. Term of Grant

(a) Subject to the satisfaction of the Conditions Precedent, the Franchisor grants to the Franchisee, with effect from the Commencement Date and throughout the Term and in accordance with the terms of this Agreement, the non-exclusive right and licence to use the System (including such additions or variations to the System as may from time to time be specified by the Franchisor) in relation to the operation and promotion of the Hotel and the Business under the Brand.

(b) The Franchisee shall:
   (i) at its own cost, use all reasonable endeavours to procure the fulfilment of the Franchisee Conditions Precedent by no later than three (3) months after the date of this Agreement (the "**Cut-Off Date**");
   (ii) keep the Franchisor generally informed, on no less than a monthly basis, of the status of satisfaction of the Franchisee Conditions Precedent;
   (iii) cooperate with the Franchisor and use its best endeavours to ensure that the Franchisee Conditions Precedent are satisfied as soon as reasonably possible; and
   (iv) promptly notify the Franchisor upon satisfaction of the Franchisee Conditions Precedent.

(c) The Franchisor shall, at its own cost, use reasonable endeavours to procure the fulfilment of the Franchisor Conditions Precedent.

(d) Once the Franchisor is satisfied that the Conditions Precedent have been satisfied this Agreement shall become unconditional.

(e) The Franchisee acknowledges that the Franchisee has received the Franchise Disclosure Document from the Franchisor containing, among other information, all information required by all applicable Legal Requirements on the Franchisor's duty to provide information, prior to executing this Agreement. The Franchisee further acknowledges that the Franchisee has had a full and adequate opportunity to read and review the Franchise Disclosure Document and this Agreement after receiving them from the Franchisor at least fourteen (14) days prior to executing this Agreement (or seven (7) days if the Franchisee has been advised by the Franchisee's legal counsel or franchise consultant, should the Franchisee choose to seek such advice).

(f) The Franchisor reserves all rights not expressly granted to the Franchisee under this Agreement, including the right to use or license the System (including the Trade Mark) or any part of it or to directly or indirectly engage in or operate and grant others the right to use the System or engage in or

operate other businesses, including businesses which are similar to the Business anywhere in the world including in the vicinity of the Hotel.

2. Hotel Employees and General Manager

(a) The Franchisee shall employ (or procure the Management Company to employ under the Management Agreement) Hotel Employees, including the General Manager, and shall fully comply with and/or shall procure the Management Company to fully comply with all Legal Requirements related to their employment in the Territory. The Franchisee shall enter into (or shall procure the Management Company to enter into) the relevant and necessary employment contracts with the Hotel Employees in compliance with the Legal Requirements and the Hotel Employees and the General Manager shall in no way be deemed as employees of the Franchisor.

(b) In respect of the appointment of the General Manager, the Franchisee shall ensure that the General Manager:
   (i) is trained in accordance with clause 2(d);
   (ii) has the appropriate level of experience as required to be a General Manager at an international hotel with similar facilities, location and standing as the Hotel; and
   (iii) meets any reasonable requirements and accreditation standards required by the Franchisor.

(c) The Franchisee shall:
   (i) notify the Franchisor of its proposed candidates for General Manager and provide the candidates' resumes to the Franchisor; and
   (ii) provide the Franchisor the right to interview each candidate and, within twenty-one (21) days after receipt of the Franchisee's nomination which is evidenced by a signed receipt issued by the Franchisor, to disapprove of such candidates. Should the Franchisor fail to respond to the Franchisee's nomination of a candidate within twenty-one (21) days after receipt of such nomination, the relevant candidate shall be deemed approved by the Franchisor.

(d) The Franchisee shall ensure that the General Manager (and any replacement) shall attend, at the Franchisee's cost, such training programs as may be required by the Franchisor, within one (1) month of commencement of employment at the Hotel.

3. Use of Brand

(a) Except as expressly permitted under this Agreement or approved in writing by the Franchisor, the Franchisee shall not, whether by written or oral means, use, disclose, promote, publicise, associate itself with or otherwise make any reference to, the Brand, the System or this Agreement for any purpose including:
   (i) in any signage or announcements displayed at the Land or in connection with the Hotel;
   (ii) in any advertising or promotional or marketing material or campaign; or
   (iii) in any meeting, briefing, seminar, conference or information session with selling agents, analysts, media, prospective purchasers of any part of the Hotel or any other person.

(b) The Franchisee will not be in breach of clause 3(a) above, if the Brand is disclosed or displayed, at any time during the Term, for the purposes of or in connection with the operation and promotion of the Hotel and/or conducting the Business.

4. Payments

(a) The Franchisee shall pay to the Franchisor (and/or its Affiliates):
   (i) the Franchise Support Fee;
   (ii) the Sales & Marketing Fee;

(iii) the Reservation Fees;
(iv) Loyalty Program Fee for participation in the Loyalty Program;
(v) the fees and other charges set out in Schedules 3A and 3B; and
(vi) all other fees and charges provided for under this Agreement.

(b) The Franchisee acknowledges and agrees that reservations may be made through the Central Reservation System and through different distribution channels and acquisition levers and such reservations shall attract the Reservation Fees.

(c) In addition to the Reservation Fees, such reservations may attract third parties' fees and commissions which are payable by the Franchisee, such as fees and commissions payable to third party distributors, travel agents, Paid Search and Metasearch commissions.

(d) The fees under Schedule 3A and Schedule 3B may be varied by the Franchisor (and/or its Affiliates) upon sixty (60) days prior written notice to the Franchisee.

(e) The Franchisee shall provide the Franchisor with any information requested by the Franchisor to enable the Franchisor (and/or its Affiliates) to connect the Hotel to the Central Reservation System. The Franchisee acknowledges that the Franchisor (and/or its Affiliates) will be under no obligation to connect the Hotel to the Central Reservation System unless and until the Franchisor receives such information from the Franchisee.

(f) The Franchise Support Fee, the Sales & Marketing Fee and the Reservation Fees shall be calculated on a Fiscal Year basis and shall be paid in respect of the preceding month on the twentieth (20th) day of each month. The Sales & Marketing Fee, the Reservation Fees and the Franchise Support Fee under this Agreement shall be computed and paid in the Currency. All other fees charges and reimbursements under this Agreement will be specifically invoiced by the Franchisor (and/or its Affiliates) in the applicable foreign currencies (e.g. USD, Euro, etc.) and, using the exchange rate based on the middle rate of the Bank of Korea on the last day of the month stated in the invoice, and shall thereafter be paid in the Currency. If any amounts payable by the Franchisee are not paid when due, in addition to being in breach of this Agreement, to the extent permitted by Legal Requirements, the Franchisee shall be liable to pay the Franchisor (and/or its Affiliates) interest on any outstanding amount from the due date for payment at the Rate of Interest until the outstanding amount and accrued interest are paid.

(g) The Franchisor (and/or its Affiliates) may deduct any amount that is due to be paid by the Franchisee pursuant to this Agreement from any amount it owes to the Franchisee.

(h) Unless otherwise specified in this Agreement or required by applicable Legal Requirements, all fees payable under this Agreement shall be non-refundable.

5. Reports and Accounts

(a) The Franchisee shall keep complete and accurate books of account and other records reflecting the Total Rooms Revenue, occupancy and average room rate in accordance with Accounting Principles and shall at its expense:
(i) have them audited once a year during the Term by an independent qualified auditor with a minimum of "Certified Practicing Accountant" status appointed by the Franchisee and reasonably acceptable to the Franchisor;
(ii) submit the whole of such audited accounts to the Franchisor within four (4) months of the end of each year; and
(iii) keep the books of account for not less than five (5) years, or for such longer period (if any) under applicable Legal Requirements.

(b) On or before the first (1st) Business Day of each month, the Franchisee shall provide to the Franchisor, in such form as is reasonably required by the Franchisor, a complete and accurate statement of the Total Rooms Revenue, occupancy and the average room rate for the Business for the preceding month.

(c) If an audit of the accounts, records or books shows the Franchisee to have over-paid any amounts due under this Agreement, the Franchisor shall pay to the Franchisee such sum as has been over-paid by the Franchisee promptly upon receipt of an invoice showing such sum as has been over-paid.

(d) If an audit of the accounts, records or books shows the Franchisee to have under-paid any amounts due under this Agreement, the Franchisee shall pay to the Franchisor such sum as has been under-paid by the Franchisee promptly upon receipt of an invoice showing such sum as has been under-paid.

6. Franchisor's Obligations

The Franchisor shall fulfil its obligations under this Agreement throughout the Term.

The Franchisor (and/or its Affiliates) shall:

(a) **Manuals –** lend the Franchisee (either in printed form or via electronic media) such Manuals, as the Franchisor may determine in its discretion are appropriate and necessary for the operation of the Business under the System. All Manuals are Confidential Information and may be revised or replaced from time to time;

(b) **Advertising and Promotion –** undertake such group advertising and promotion, publicity, marketing and other marketing programs and services and related activities for the System as the Franchisor (and/or its Affiliates) furnishes generally to other Accor Group Hotels and generally in accordance with budgets and marketing plans adopted by the Franchisor (and/or its Affiliates) from time to time;

(c) **Central Reservations –** so long as the Franchisee is in full compliance with its material obligations under this Agreement, afford the Franchisee access to such Central Reservation System as the Franchisor (and/or its Affiliates) may from time to time determine to be necessary and appropriate for the Business;

(d) **Directories –** list the Business in directories of short-term accommodation as may be published by the Franchisor (and/or its Affiliates) from time to time, provided the Franchisee pays the related charges. However no charge is payable for listing in the Accor Worldwide Directories, the Franchisor's (and/or its Affiliates') Hotel Directory and on the Accor Worldwide Web;

(e) **Incentive and Promotional Schemes –** permit the Franchisee to participate in brand loyalty, advance payment, frequent user, member privilege and other promotional activities and schemes sponsored by Accor Group, unless such participation is, in the Franchisor's (and/or its Affiliates') opinion, not reasonably practicable or appropriate;

(f) **AccorConnect –** procure, at the cost of the Franchisee, the installation of and training for AccorConnect (or any replacement software utilised by the Accor Group) and permit the use by the Franchisee of AccorConnect, subject to the conditions set out under this Agreement;

(g) **Training –** provide initial and on-going training to the General Manager and the Franchisee's employees, at the Franchisee's cost, as the Franchisor (and/or its Affiliates) may from time to time reasonably consider necessary or appropriate at such places as may be designated by the Franchisor (and/or its Affiliates) subject to the Franchisee's payment of the training fee as specified by the Franchisor (and/or its Affiliates) from time to time, within fifteen (15) days of the date of invoice; and

(h) **Access to Improvements –** provide the Franchisee with continued access to any Improvements which may be implemented from time to time during the Term.

7. Data Protection and Database

(a) The Parties acknowledge that the operation of the Hotel requires the Processing of Personal Data and that the protection of such Personal Data is of utmost importance.

(b) The Parties agree to comply, at its own cost, with applicable Legal Requirements in relation to the Processing of such Personal Data.

(c) Each Party undertakes to:
   (i) Process Personal Data lawfully, fairly and in a transparent manner in relation to the data subject;
   (ii) only Process Personal Data for specified, explicit and legitimate purposes and not further Process Personal Data in a manner that is incompatible with those purposes;
   (iii) retain Personal Data in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the Personal Data is required;
   (iv) Process Personal Data in a manner that ensures appropriate and reasonable security of the Personal Data, including protection against unauthorized or unlawful Processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures;
   (v) provide individuals with access to their Personal Data that the Party has in its possession or control, as soon as practicable upon an individual's written request; and
   (vi) make reasonable efforts to ensure that the Personal Data in its possession or control is accurate and complete, and to take steps to correct any errors in the Personal Data, as soon as practicable upon the individual's written request.

(d) The Franchisee shall promptly notify the Franchisor when the Franchisee becomes aware of a breach of any of its obligations in this clause 7, whether such breach is a result of the Franchisee's own actions or those of third parties.

(e) During the Term, the Franchisee shall only Process Accor Guest Data in connection with the operation of the Hotel and only in accordance with:
   (i) the Franchisor's directions and policies regarding the Processing of Personal Data; and
   (ii) applicable Legal Requirements relating to the security of Personal Data.

(f) At all times, any information stored in the:
   (i) Hotel Databases shall be the property of the Franchisee; and
   (ii) Accor Guest Database (including information derived, obtained or extracted from the Hotel Databases) shall be the property of the Franchisor or its Affiliates, notwithstanding the expiration or termination of this Agreement.

(g) Upon expiration or termination of this Agreement:
   (i) the Accor Group shall be entitled to continue, only to the extent permitted by applicable Legal Requirements, the Processing of Hotel Guest Data included in the Accor Guest Databases during the Term;
   (ii) the Franchisee and Hotel Employees shall cease to use any Accor Guest Data to which it may have had access to during the Term; and
   (iii) the Franchisee shall be entitled to continue, only to the extent permitted by applicable Legal Requirements, the Processing of Personal Data included in Hotel Databases, in particular Hotel Guest Data and including Accor Guest Data included in the Hotel Databases during the Term.

(h) The Parties agree that, in addition to using the information stored on the Hotel Databases, the Franchisor may use Accor Guest Data (including information from the Hotel Databases) for the purposes of sales, marketing, financing and Loyalty Programs and any other related or ancillary purposes.

(i) The Parties undertake to cooperate with the competent data protection authorities, in particular in case of any request for information a Party may receive or in case of any control by such authorities that is made pursuant to this Agreement.

(j) Each Party undertakes to promptly inform the other Party in case of any request from an administrative or judicial authority that is raised pursuant to this Agreement.

(k) The Parties agree to comply with the Data Protection Principles as a binding contractual obligation on the Parties which is enforceable by the Parties.

(l) The provisions of this clause 7 shall survive the expiration or earlier termination of this Agreement.

8. Franchisee's Covenants

The Franchisee shall fulfil each of its obligations under this Agreement throughout the Term.

The Franchisee shall:

(a) **Introduction of policies –** be responsible for, and shall introduce and implement, the operating policies, environmental policies and health and safety policies for the Hotel and the Business, which shall meet minimum compliance requirements under all Legal Requirements and shall not in any way compromise the goodwill or reputation of the Brand;

(b) **Implement Directions –** implement all directions or requests of the Franchisor in respect of all aspects of the Hotel and Business which may be made in order to maintain and preserve the goodwill and reputation in the Brand and the System and to vest all rights (present or future), goodwill and reputation in the Brand and the System in the Franchisor and/or Accor Group;

(c) **Licences and Approvals –** expeditiously obtain and maintain throughout the Term all necessary governmental, statutory, local authority and other regulatory licences, approvals, authorisations, registrations and consents necessary to operate the Business and for the due and proper performance of its obligations under this Agreement;

(d) **Adhere to Manuals –** act strictly in accordance with the Manuals and any other materials provided by the Franchisor (whether provided in printed form or via electronic media) and operate the Business under the System in accordance with the Manuals and otherwise in accordance with this Agreement. Where the Franchisor notifies the Franchisee of any amendment to the Manuals or other materials the Franchisee shall promptly take all such steps and actions as may be necessary to accommodate the same and discontinue use of any superseded or amended Manuals or materials and return or destroy the same as the Franchisor may instruct; the Franchisee shall not use the Manuals otherwise, and shall ensure that the Manuals are not disclosed to any third party and that any printed forms of the Manuals remain at the Hotel. The Franchisee shall be responsible for the installation, maintenance and repair of the FF&E and their associated costs, and matters relating to the installation, maintenance and repair of the FF&E shall be set out in the Manuals;

(e) **Inspection of Hotel –** permit the Franchisor or its authorised representatives (including an accountant, legal advisor or auditor appointed by the Franchisor) to inspect the Hotel at any reasonable time and to attend at the Hotel to observe the Franchisee's operation of the Business, including to:

(i) interview the Franchisee's employees, including the General Manager; and

(ii) inspect, audit and take copies of any financial, operational, marketing and other information, records, books, or accounts relating to the Business.

The Franchisee shall permit and assist the Franchisor to make such investigations as it may deem necessary to ensure that the activities of the Franchisee comply with this Agreement and the prevailing Legal Requirements. On the basis of such inspection and review, and without prejudice to any other remedy which may be available to it, the Franchisor may direct the Franchisee as to the actions and/or steps which the Franchisor requires to be taken or implemented by the Franchisee in order to ensure the Franchisee's compliance with its obligations under applicable Legal Requirements and this Agreement, particularly for the protection of the Brand and the System and for adherence to the System. The Franchisee shall at its own expense comply promptly with all such directions;

(f) **Promotion of Group Affiliates –** promote and ensure that the Business promotes use of Accor Group Hotels and not encourage use of other hotels except where Accor Group Hotels are not reasonably available;

(g) **Operate under Brand –** operate the Hotel and the Business in accordance with and comply strictly with all applicable Legal Requirements, specifications, directions, standards, practices and procedures relating to the System and ensure at all times the Hotel and the Business are operated using the Brand.

Without limitation, the Franchisee shall feature in all of its promotional material the Brand and the Trade Mark, together with standard distinguishing characteristics of the System prescribed by the Franchisor so that the Hotel and the Business will be directly recognisable by the general public as an integral part of the System, including such statements or information about the Franchisor or the System as the Franchisor may reasonably direct from time to time. The Franchisor reserves the right to supervise, determine and approve the standards of quality of service at the Hotel and to inspect the Hotel and the operations of the Hotel to ensure the Standards are maintained;

(h) **Hotel Name –** ensure that the Business shall be operated under the Hotel Name. The Franchisee shall use the Hotel Name and the Trade Mark in such form colour, design, style and manner as directed or approved by the Franchisor from time to time and shall not use or apply any other name, trade mark, indicia, logo or other proprietary or commercial name or designation in connection with the System or the Business without the Franchisor's prior written consent. Only if required by the Legal Requirements, the Franchisee shall register the Hotel Name in relation to the Business and shall, upon registration, advise the Franchisor of the Hotel Name under which the Hotel is registered and provide the evidence of registration. Prior to registering the Hotel Name, the Franchisee must clearly inform the Franchisor, in writing, in relation to the purpose of the registration, and shall execute and deliver to the Franchisor an irrevocable limited power of attorney appointing each of the directors of the Franchisor for the time being and from time to time as the Franchisee's duly authorised attorney, and otherwise to execute such documents as may be reasonably requested by the Franchisor, in all instances in the form prescribed by the Franchisor, to cancel the registration of the Hotel Name upon the expiration or termination of this Agreement;

(i) **Franchisee's name –** not include the Brand in its name and that it shall not use the Brand in the name of any corporation, joint venture, partnership, limited partnership or any other type of business organization;

(j) **Domain Name –** not object to the Franchisor or Accor Group registering a URL address or addresses as a domain name or domain names which uses the Trade Mark (the "**Domain Names**") in connection with the Hotel. The Franchisee shall not use or register, or attempt to use or register, any domain name using the Trade Mark, any other indicia of origin of Accor Group or their respective products or services, or any variation, interpretation or translation of any such indicia of origin. The Franchisee shall not create its own website for the Hotel or the Business without the Franchisor's prior written approval, such approval to be in the Franchisor's absolute discretion. If approval is granted, the Franchisee's website shall be compliant with the Brand and all reservations shall be via all.accor.com. The irrevocable limited power of attorney to be executed and delivered by the Franchisee in clause 8(h) above, shall include the power to cancel, or to transfer to the Franchisor or its nominee, any domain name including the Brand at any time;

(k) **Stationery, Documents and Items –** not use, or permit to be used, any form of stationery, document or item which bears any of the Proprietary Rights for any purpose other than for the operation or promotion of the Business without the Franchisor's prior written consent;

(l) **Promotion of the Business –** distribute and display at the Hotel all literature displays, advertising, promotional matter and information about the Franchisor (and/or its Affiliates), the System or about Accor Group in accordance with the Franchisor's (and/or its Affiliates') directions and specifications from time to time;

(m) **Reservations, AccorConnect –** ensure that the Hotel is connected to the Central Reservation System accepting reservations in accordance with the Franchisor's (and/or its Affiliates') reservations procedures from time to time. The Franchisee agrees to comply with all requirements and terms, including payment of all required fees and charges, as set out in Schedule 3A and Schedule 3B. The Franchisee shall pay the applicable charges and fees set out in Schedule 3A and Schedule 3B within thirty (30) days of the receipt of invoice or as otherwise stipulated by the Franchisor (and/or its Affiliates). The Franchisee shall be responsible for:

(i) any and all costs associated with the use of AccorConnect including the migration of any Franchisee's Data and/or Guest Data to AccorConnect and the Hotel's PMS; and

(ii) the purchase and installation of all hardware, software and local connection, as is necessary to connect the Hotel to AccorConnect;

(n) **Programs –** promote and participate in (and comply with the applicable prevailing terms and conditions of) the Loyalty Programs, privilege and other sales and marketing programs, and participate in the quality control and audit programs on the same terms and charges generally available to other Brand Hotels in the Territory. The Franchisee shall promote and participate in (and comply with the applicable prevailing terms and conditions of) Accor Group's "Accor Plus" scheme as generally available to Brand Hotels in the Territory. The Franchisee shall not promote any loyalty or subscription programs other than those of the Accor Group;

(o) **Maintenance –** diligently keep and maintain the interior and exterior of the Hotel, its surroundings and all signage in a good, clean, attractive and safe condition including by renovating, modernising, repairing, replacing, repainting and/or refurnishing the same as necessary to comply with all applicable Legal Requirements and the Standards and maintain the standards of quality and skill in line with the Standards and in relation to the conduct of the Business and the use of the System so as to maintain the reputation of the Brand and System;

(p) **Standards –** carry out at its cost such standard repairs, maintenance, replacements, enhancements, modifications or capital work that is not significant capital expenditure as reasonably required for the Hotel to comply with all requirements which are applicable to hotels operated under the Brand or which are required for the Hotel to meet the Standards, in compliance with applicable Legal Requirements and in good working order and condition;

(q) **Hotel Discounts** – in respect of the Hotel, offer certain benefits in accordance with the Accor Group Policies (including discounts at the Hotel (including complimentary, reduced or preferential room rates and discounts on food and beverages)) to:

(i) identified representatives or designees of owners of Accor Group Hotels;
(ii) identified representatives or designees of the Accor Group;
(iii) members of the Loyalty Programs; and
(iv) employees of the Franchisor and its Affiliates and employees of Accor Group Hotels as a benefit of their employment.

Such discounts shall not materially exceed those generally accepted in the hotel industry;

(r) **Future Additions –** not carry out any material construction, substantial alteration or improvement, renovation or refurbishment to the Hotel or on the Land unless such work is approved in writing by the Franchisor and following such work the Hotel shall continue to meet the Standards. Any planned material alterations, improvements, developments or subdivision construction work (including, without limitation, any restoration or rebuilding) shall be submitted to the Franchisor for its prior written approval before any such work or subdivision is carried out by the Franchisee. Notwithstanding any approval that may be given by Franchisor under this clause 8(r), Franchisor shall not be responsible, legally, financially or otherwise, for ensuring that such alteration, improvement, renovation, refurbishment or construction work is in compliance with the Standards and Legal Requirements, and these shall remain the sole obligation of the Franchisee;

(s) **Infringement of Intellectual Property Rights –** promptly as soon as the Franchisee is aware notify the Franchisor of any inadvertent disclosure or unauthorised use of the System, any infringement, threatened infringement of, any suspected passing off and/or any threat or challenge to any of the Proprietary Rights and take, join or assist in such action as the Franchisor may reasonably require in respect thereof at the Franchisor's expense;

(t) **Payment of Costs –** pay to the Franchisor contributions towards the costs of services provided under this Agreement where this Agreement provides that the Franchisee shall pay for such services. The Franchisee accepts that it shall not be entitled to the benefits of having the Hotel integrated into the Central Reservation System and/or international and national sales and marketing network of Accor Group if it fails to pay the Franchise Support Fee and all other fees when due;

(u) **Payment of Stamp Duty –** pay all stamp duties or other like taxes or duties payable on this Agreement or any of the documents contemplated by this Agreement and provide the Franchisor with evidence that any applicable stamp duties or other such taxes have been paid within thirty (30) days of having the document stamped (if applicable);

(v) **Risk Management –** participate in and comply with all risk management, compliance and audit programmes and/or procedures from time to time which are utilised by the Franchisor or its Affiliates or by hotels managed or owned by the Franchisor or its Affiliates on the same terms and charges as usually imposed in the Territory;

(w) **Brand Audit –** participate in and comply with all brand audit programmes and/or procedures which are utilised by the Franchisor or its Affiliates or by hotels managed or owned by the Franchisor or its Affiliates, on the same terms as made available to Brand Hotels in the Territory, including, without limitation, programmes, procedures and audits conducted by the Franchisor's appointed brand audit contractor. The costs of such audits shall be borne by the Franchisee. The Franchisee shall also provide accommodation at no cost to the brand audit contractor. The Franchisee acknowledges and agrees that the following mandatory audits shall be carried out, at the Franchisee's cost, at least once every Fiscal Year at the Hotel by the Franchisor or its sub-contractors:

(i) hygiene audit (including any health and safety audit);
(ii) guest satisfaction survey;
(iii) product quality audit; and
(iv) risk management audits.

The Franchisee shall pay the Franchisor, its Affiliates, its sub-contractor or the selected third-party provider, the applicable charges within thirty (30) days of receipt of the invoice.

(x) **Defects –** make good (or cause its sub-contractors to make good) any defects and implement all recommendations set out in the audit reports issued by the Franchisor to the Franchisee within fifteen (15) days of receipt of such audit reports, unless otherwise agreed by the Parties in writing;

(y) **Sale of Rooms and Room Rate –** have rooms listed and open for sale through the Central Reservation System and Accor Group Websites until such time as the Franchisee has stopped selling rooms within the Hotel via any other means including via any third party distribution channels. The Franchisee shall not sell or let rooms within the Hotel, either directly or via any third party distribution channel for a particular period at a cheaper rate (or at the same rate with any additional benefits or services) than the rate offered for the same room (or rooms) during the same period via the Central Reservation System or Accor Group Websites. The Franchisee shall also:

(i) comply with Schedule 3A and Schedule 3B in relation to distribution of the Hotel and participate in all distribution agreements and programs (both existing and new) recommended by the Franchisor (and/or its Affiliates) including:
  (A) preferred agreements with travel management companies;
  (B) preferred agreements with Metasearch channels; and
  (C) search engine marketing programs;
(ii) comply with the distribution policy for the Hotel determined by the Franchisor (and/or its Affiliates);
(iii) participate in the Accor Group call centre overflow service program available for the Accor Group Hotels based in the Territory;
(iv) manage the rates and availabilities according to the revenue management principles of the Accor Group; and
(v) ensure all reservations made via online travel agencies are channeled through the Central Reservation System;

(z) **Staff and Training –**employ or procure the Management Company to employ a sufficient number of trained staff, and ensure that all managerial staff are trained, to conduct the Business and to comply fully with the Franchisee's obligations under this Agreement and in the Manuals and participate and procure that its staff participate, in such ongoing training as the Franchisor (and/or its Affiliates) may from time to time reasonably consider necessary or appropriate;

(aa) **Due Care –** ensure that it conducts the Business and manages the Hotel with due care and diligence at all times, including in respect of matters which may affect the health and safety of staff and hotel guests, and that it complies with all Legal Requirements relating to work place health and safety;

(bb) **Provision of Data –** provide to the Franchisor certain data and information in relation to the Hotel as requested from time to time, including without limitation in connection with the Franchisee's and Hotel's compliance with the Accor Group Policies, environmental and social matters, to the extent necessary to enable the Franchisor and its Affiliates to comply with their own reporting activities and duties regarding Accor Group Hotels;

(cc) **Compliance with laws and orders** – ensure that:

(i) it conducts the Business in compliance with all applicable Legal Requirements and provides any corporate documents, business licence or any warnings issued by any regulatory authorities as may be requested by the Franchisor at any time; and

(ii) it complies with all court orders and the directions of any regulatory agency, including payment of any orders when due and providing any documents when requested by any applicable regulatory agency (whether requested from the Franchisor or the Franchisee);

(dd) **Facilities –** ensure that the Hotel comprises all the Facilities;

(ee) **Signage –** prominently and exclusively display at the Hotel, the Brand in exterior and interior signage and in all advertising and promotion of the Hotel and Business in accordance with the Manuals, as directed by the Franchisor from time to time;

(ff) **Performance measures –** ensure that it meets or exceeds any measures of good franchisee performance established by the Franchisor from time to time, including that the number or type of customer complaints will not exceed a specified level and the Franchisee shall participate in the customer feedback surveys utilized by the Franchisor on the terms and monthly charges imposed by the Franchisor;

(gg) **Insolvency –** not make any composition or arrangement with its creditors, take advantage of any statute for the relief of insolvent debtors, suffer a receiver to be appointed over any substantial part of its assets, become or be deemed to become unable to pay its debts as they fall due;

(hh) **Crisis and Incident Management –** comply with the Franchisor's crisis management procedures as notified to the Franchisee from time to time including without limitation:

(i) immediately notifying the Franchisor of any event or emergency occurring in respect of the Hotel or the Business; and

(ii) promptly reporting to the Franchisor all incidents or damages involving security, safety, public relations or serious injury to, or death of, persons or property that occur at, or involve the Hotel or the Business, and shall consult with the Franchisor before speaking to or corresponding with the media about any such incident.

The Franchisor is not liable for any damage resulting from any crisis or incidents resulting from the Franchisee's non-compliance with any Legal Requirements, irrespective of any advice/assistance provided by the Franchisor;

(ii) **IT Security –** have security arrangements to prevent attacks to the security of the IT system for the Business, including improper access to data on the System; ensure the availability of the Business's IT system at all times, protect the integrity and security of guest's data (including credit card information), ensure that guest's data is not lost, altered, destroyed, garbled or (without appropriate authorisation) disclosed;

(jj) **Revenue Management –** ensure that the Hotel has a revenue management system approved by the Franchisor, and, if recommended by the Franchisor, the Franchisee may use the revenue management services provided by the Franchisor (and/or its Affiliates), the costs of which will be notified to the Franchisee from time to time;

(kk) **Business Operation –** only operate the Business under the Brand in the Hotel and shall not provide other services or products in the Hotel without the Franchisor's prior written consent; and

(ll) **Subdivision or Strata Conversion –** not subdivide or convert to strata title (or similar) ownership the Hotel or Land without the prior approval of the Franchisor.

8A. Commencement

8A.1 Franchisee to undertake Works

(a) The Franchisee shall undertake, at its cost, the Works in accordance with the:
  (i) Approved Plans and Specifications;
  (ii) HCSA; and
  (iii) PIP.

(b) The Works must incorporate all the Facilities and comply with the Standards.

8A.2 Milestone Dates

(a) The Franchisee shall, at its own cost, ensure that:
  (i) Works Commencement Date has occurred by or before the applicable Milestone Date; and
  (ii) Practical Completion has occurred by or before the applicable Milestone Date.

(b) The Franchisee must ensure that the Commencement Date occurs by the applicable Milestone Date.

(c) If the Parties are unable to agree whether a Milestone Date has been exceeded, either Party may refer the matter for Expert Determination.

(d) Notwithstanding anything to the contrary in this Agreement:
  (i) each Milestone Date can only be extended as a consequence of a Force Majeure Event, by a maximum of ninety (90) days; and
  (ii) the total extension of all the Milestone Dates as a consequence of a Force Majeure Event is capped to a maximum of three hundred and sixty-five (365) days.

8A.3 Practical Completion

(a) Promptly after Practical Completion, the Franchisee must:
  (i) obtain all certificates from relevant authorities evidencing that the Works comply with all Legal Requirements and the requirements of those authorities;
  (ii) obtain all licences required for the Hotel to be fully open for business to the public;
  (iii) effect all insurances required under clause 11 are in effect and the Franchisee has provided copies of the applicable certificates of insurance to the Franchisor; and
  (iv) satisfy all Franchisee Conditions Precedent.

(b) The Franchisee shall give the Franchisor a copy of the certificates and licences referred to in clause 8A.3(a) upon request.

8A.4 Commencement Date

(a) Subject to clause 8A.4(b), the Commencement Date is estimated to occur on 1 July 2026.

(b) The Commencement Date may not occur before Practical Completion and satisfaction of all Conditions Precedent.

8A.5 Defects

(a) The Franchisee must, in an expeditious manner, make good any defects notified, in writing, by the Franchisor to the Franchisee.

(b) In carrying out any rectification works, the Franchisee must cause minimal disturbance to the operation of the Hotel.

8A.6 Signage

(a) The Franchisee shall prepare, in consultation with the Franchisor, a signage plan specifying the position of permanent and temporary signage for the Hotel.

(b) The Franchisee must apply for, and diligently pursue, all necessary consents and permissions for such signage at the appropriate time(s).

(c) The relevant signage proposed in the signage plan must be consistent with the Standards.

9. Contracting and Benefits from Purchases

9.1 Hotel Contracts

The Franchisee authorises the Franchisor to enter into agreements on behalf of the Franchisee for:

(a) the provision of rooms at the Hotel at rates submitted by the Franchisee to the Franchisor and/or with such benefits as agreed to by the Parties; and

(b) marketing and promotional arrangements with third parties involving the Hotel which benefit the System as a whole.

The Franchisee agrees that it will honour the terms of any such agreements.

9.2 Benefits from Purchases

(a) The Franchisor and/or its Affiliates may provide the Franchisee with access to the Franchisor's list of recommended suppliers (to the extent such list exists) in the Territory from which the Franchisee may elect to make Purchases. In the case of any Purchases made by the Franchisee, the Franchisee must be solely responsible for compliance with the supplier's then current standard terms and conditions of sale. The Franchisee acknowledges and agrees that, with respect to any such Purchases, the Franchisor or its Affiliates may receive or retain Benefits.

(b) The Franchisee further agrees that the Benefits may be the result of multiple Purchases by multiple hotels resulting in a bulk discount benefit.

(c) The Franchisor confirms that the Franchisee may elect not to make Purchases from the Franchisor's preferred suppliers or any of its Affiliates provided that such Purchases procured from third party suppliers are of equal or better quality to those available from the Franchisor's preferred suppliers or Affiliates and compliant with the Standards and there is no detriment to the operation of the Hotel.

10. Improvements

(a) If during the Term the Franchisee shall devise any Improvement (including any experience gained using the System), the Franchisee shall disclose to the Franchisor details of such Improvement together with the nature and means of making use of it (if known) and shall grant to the Franchisor, on a royalty-free basis, an irrevocable, assignable, worldwide, perpetual licence to use and develop, and to sub-license to other users of the System the use and development of the Improvement, including by integrating such Improvement into the System and co-ordinating its dissemination to other users of the System under licence from the Franchisor and/or Accor Group for their mutual benefit in using and exploiting the System.

(b) The Franchisee shall sign any documentation provided by the Franchisor to effectuate the requirements of clause 10(a) above and if necessary, to assist the Franchisor to ensure that such documentation or any Improvement registration application can be registered with the relevant intellectual property office.

11. Insurance

11.1 Insurances Required

As and from the Commencement Date, the Franchisee must effect and maintain all customary insurances, including:

(a) property insurance;

(b) general liability insurance;

(c) employer's liability in compliance with applicable Legal Requirements;

(d) workers' compensation for all Hotel Employees in compliance with applicable Legal Requirements;

(e) all liability connected with Hotel motor vehicles in compliance with Legal Requirements, including:

  (i) injury to passengers and drivers; and

  (ii) injury or damage caused to any third party;

(f) cyber insurance;
(g) plant and machinery breakdown insurance (including IT equipment);
(h) fidelity insurance relating to Hotel Employees (including loss arising from the fraud of any Hotel Employee); and
(i) any other insurances that may be required by any Legal Requirements.

11.2 Property Insurance

(a) The property insurance policy shall reflect the following terms and conditions:
  (i) covering any physical loss or material damage to the Hotel, belonging or not to the Franchisee, at full replacement value, on an all risks basis, occurred, in particular, in connection with, fire, flood, earthquake, earth movement (including heave and subsidence) lightning, storm, explosion, riot, strike, aircraft impact (and articles dropped from aircraft), glass breakage, machinery breakdown;
  (ii) the amount of coverage will be up to the total reinstatement cost of the Hotel, as determined by the Franchisee subject to excesses, deductibles and limitations consistent with what is usually imposed by insurers in the insurance market for the Territory;
  (iii) business interruption for a minimum indemnity period of thirty-six (36) months covering:
    (A) any reduction in the Total Rooms Revenue; and
    (B) the Franchise Support Fee (based on the previous Fiscal Year's results);
    arising from the loss or damage caused to the Hotel by occurrence of any peril insured under the above material damage cover; and
  (iv) shall include, if available on the insurance market in the Territory at reasonable price, any material damage and business interruption occurred in connection with terrorism.
(b) The property insurance policy shall include the Franchisee and the Franchisor as named insured parties.
(c) Without limiting any provision of this Agreement, with respect only to claims for losses covered by the above property insurance policies, and to the extent required by the insurance company in connection with the subscription of a property insurance policy, the Franchisee shall:
  (i) waive any recourse against the Franchisor and its Affiliates, and their insurers; and
  (ii) obtain from its own insurer the same waiver for any recourse against the Franchisor and its Affiliates, and their insurers.
(d) All costs associated with the property insurance policy shall be borne by the Franchisee.

11.3 General Liability Insurance

(a) The general liability insurance policy shall cover all financial consequences of the Franchisee's and the Franchisor's liabilities toward any third party (including guests) and in particular against:
  (i) bodily injuries; and
  (ii) property and financial losses.
(b) The general liability insurance shall be for an amount which shall not be less than Euro ten million (EUR 10,000,000) per occurrence without any annual limitation on the number of occurrences.
(c) The general liability insurance shall be on a worldwide jurisdiction basis,
(d) The general liability insurance policy shall include the Franchisee and the Franchisor as named insured parties.
(e) The general liability insurance may be taken out and maintained by the Franchisor through the Accor Group's insurance worldwide program. Details of the program can be provided upon request.
(f) All costs associated with the general liability insurance policy shall be borne by the Franchisee.

11.4 General Conditions

(a) All insurances maintained by the Franchisee during the Term shall be with reputable licensed insurance companies with a minimum financial rating of AM Best "A; VI" rating or its equivalent or reasonably acceptable to the Franchisor.
(b) The Franchisee shall ensure that all premiums or levies payable by itself in respect of the aforesaid policy or policies are paid promptly.
(c) On the first day of each Fiscal Year, the Franchisee shall provide to the Franchisor an insurance certificate of each policy maintained by the Franchisee in relation to the Hotel. Such certificate shall include the following details:

(i) scope and amount of coverage;
(ii) applicable deductibles and caps and primary exclusions; and
(iii) confirmation that the premium has been paid.

(d) The Franchisee shall remain liable, on its own account, for the amount of deductibles (including any excess) and any amounts not covered by the insurance policies referred to in clause 11.1.

(e) The Franchisee must satisfy itself (including relying upon its own advisers) as to, and accepts responsibility for, the adequacy and terms of the relevant insurance policies.

(f) The Franchisee must not, during the Term and for twenty-four (24) months from the date of expiration or earlier termination of this Agreement, change the insurance from an occurrence-based policy to a claims-based policy.

(g) The Franchisee shall comply with all insurance requirements of any lease or mortgage covering the Hotel.

(h) The procuring and maintenance of insurance and the performance by the Franchisee of its obligations under this clause 11 do not relieve the Franchisee of any liability to the Franchisor imposed by or under this Agreement.

12. Taxes

(a) The Franchisee is responsible for any VAT payable by the Franchisor (or its Affiliate, as applicable) as a consequence of any supply of goods or services made by the Franchisor (or its Affiliate, as applicable) to the Franchisee under or as contemplated by this Agreement unless contrary to applicable Legal Requirements.

(b) All payments and reimbursements due to the Franchisor (or its Affiliate, as applicable) shall, subject to clause 12(c), be made by the Franchisee without set off or counterclaim and without reduction for taxes (whether income, withholding, value added and/or any other taxes) or deductions imposed by the Territory or any Legal Requirements, or bank or other charges.

(c) If the Franchisee is required by any Legal Requirements to make a Withholding or otherwise, it shall promptly inform the Franchisor on becoming aware of this requirement. The Franchisee shall deduct from the moneys to be paid to the Franchisor (or its Affiliate, as applicable) the amount of the Withholding and shall deliver to the Franchisor (or its Affiliate, as applicable) within thirty (30) days after it has made such Withholding an original official receipt issued by the applicable authority evidencing payment to such authority of the Withholding. Should the Franchisee fail to provide such receipt to the Franchisor (or its Affiliate, as applicable) within thirty (30) days of making the deduction, or should the Franchisor be unable to claim the amount withheld against its tax payable, the Franchisee shall forthwith pay to the Franchisor (or its Affiliate, as applicable) the difference between the amount which the Franchisor (or its Affiliates, as applicable) should have received had no such Withholding been made and the amount paid to the Franchisor (or its Affiliates as applicable).

(d) The Franchisee shall be responsible for payment in a timely manner of all corporate income tax imposed on the Franchisee, all real estate and personal property taxes, and all other taxes on property levied against the Hotel or any of its parts, and against the Land or any of its parts, as well as the preparation and filing of all tax returns therefor.

(e) The Franchisee shall be responsible for the preparation and filing of all tax returns and payment of all taxes imposed in connection with the operation of the Hotel, such as value added taxes, social security taxes, and withholding taxes on the payments made to the Hotel's employees and suppliers of goods and services.

(f) Should the Franchisee default in the performance of any of the foregoing, the Franchisor may at its option without notice, in addition to such other rights and remedies which it may have, fulfil said obligations on the Franchisee's behalf and be reimbursed for such by the Franchisee with interest or terminate this Agreement if the Franchisee fails to pay all such taxes imposed in connection with the operation of the Hotel or fails to reimburse the Franchisor of the payment including interest (if payment is made by the Franchisor on the Franchisee's behalf) and has not fully remedied such failure within two (2) months of the date of receipt by the Franchisee of the first written notice from the Franchisor,

which specifies the nature of the failure, requests the Franchisee to cure such failure, and states that failure to remedy would result in termination of this Agreement, then the Franchisor may terminate this Agreement if the Franchisor has sent a second written notice to the Franchisee within the said two (2) months period.

(g) Each Party shall be responsible for paying all taxes in the nature of income taxes on all amounts received by a Party under this Agreement.

(h) The provisions of this clause 12 shall survive the expiration or termination of this Agreement

13. Indemnity

(a) The Franchisee shall indemnify the Franchisor Indemnified Parties, to the extent permitted by the Legal Requirements, from and against all claims, losses, liabilities, damages, fines, penalties, costs and demands of any nature, including any legal fees and court costs for which the Franchisor Indemnified Parties may become liable or which they may incur, whether during or after the Term arising out of or in connection with this Agreement, including:
   (i) relating to or arising out of any occurrence or event happening in or about the Hotel;
   (ii) arising from the operation of the Business; and
   (iii) arising out of any breach of any covenant, representation or warranty contained in this Agreement by the Franchisee.

(b) The Franchisor shall not be liable for any loss or damages suffered by the Franchisee that directly or indirectly arise out of or in connection with any loss in value to, or damage to the reputation of, the Brand, the System and/or the Proprietary Rights ("**Loss in Brand Value**") provided, however, that in the event that such Loss in Brand Value is solely and directly a result of any act by the Franchisor or its directors in violation of the laws of the Territory (except for any Data Protection Legislation); or the contravention of social norms in the Territory, (each being an "**Event**"), then the Franchisor will be liable to Franchisee for any direct, actual and material loss or damages that the Franchisee suffers in the operation of the Hotel as a direct result of the Loss in Brand Value up to a maximum of the aggregate amount of Franchise Support Fees received by the Franchisor as of the date that the Loss in Brand Value occurred. To the extent any Event to which this clause 13 applies occurred, the Franchisee must give the Franchisor written notice of such Event and such notice must be given within thirty (30) days of the Franchisee becoming aware of such Event.

(c) The provisions of this clause 13 shall survive the expiration or termination of this Agreement for any reason whatsoever.

14. Confidentiality and Promotional Materials

14.1 Confidentiality

(a) Subject to the provisions of this clause 14, each Party shall keep the Confidential Information confidential and shall not disclose the same to any third party without the prior written consent of the other Party.

(b) Each Party may disclose Confidential Information:
   (i) to the responsible officers, employees, professional advisers and accountants of that Party who are engaged in work concerning this Agreement (and such persons shall be bound by obligations of confidentiality on terms at least as restrictive as the terms contained in this clause 14.1);
   (ii) which is or becomes generally available to the public other than as a result of a breach by a Party of the obligations in this clause 14.1; and
   (iii) which is to be disclosed:
      (A) in connection with legal proceedings;
      (B) at the direction of a court or other competent authority;
      (C) at the direction of a Governmental Authority;

(D) in accordance with the Legal Requirements; or
(E) by the rules of any stock exchange on which its or its Affiliate's shares are listed.

(c) To the extent of any disclosure under clause 14.1(b)(iii), the relevant Party shall be permitted to make such disclosure provided that the applicable Party:
(i) has used reasonable efforts to consult with the other Party in advance of such disclosure (to the extent such Party is legally able to do so);
(ii) has had reasonable regard to the other Party's comments in relation to such disclosure; and
(iii) strictly limits such disclosure to the minimum disclosure required by the relevant authorities under clause 14.1(b)(iii).

(d) Each Party shall be responsible for any breach of the terms of this clause 14.1 by its respective responsible officers, employees, professional advisers and accountants who are engaged in work concerning this Agreement.

(e)

(i) The Franchisor may disclose Confidential Information to its Affiliates.
(ii) The Franchisor may disclose Confidential Information:
(A) to third party providers who require the Confidential Information to provide required services (for example STR Global); and
(B) in connection with any transactions or potential transactions provided for in clause 17(h).
(iii) The Franchisee may disclose Confidential Information to its direct or indirect investors and/or asset management company (collectively, "**Franchisee Disclosed Parties**") strictly on a need-to-know basis, provided that:
(A) such Franchisee Disclosed Parties shall be bound by obligations of confidentiality on terms at least as restrictive as the terms contained in this clause 14.1; and
(B) the Franchisee shall be responsible for any breach of the terms of this clause 14.1 by such Franchisee Disclosed Parties.

(f) The Franchisor may use and disclose historic Confidential Information relating to the Hotel, for the purpose of comparing the Hotel to other hotels.

(g) To the extent such comparative information may be made available to other Accor Group Hotels, the Franchisor shall do so on the basis that owners of the relevant Accor Group Hotels agree to keep such information confidential.

(h) The Franchisee agrees that, if it receives such information in relation to the other Accor Group Hotels from the Franchisor or its Affiliates, it shall keep such information confidential.

14.2 Promotional Materials and Press Releases

(a) The Franchisee shall not issue any press releases or other Promotional Materials relating to the Hotel, the Brand or the Franchisor (or its Affiliates) unless the prior written approval of the Franchisor is obtained (whose approval may be withheld at the Franchisor's sole discretion – except for releases required by Legal Requirements in which case the Franchisor shall act reasonably).

(b) The Franchisee shall obtain the Franchisor's prior written approval for any description that may be included in corporate promotional material prepared by the Franchisee and its Affiliates.

(c) The consent of the Franchisor at no time constitutes acceptance by it of any liability or responsibility in respect of the Promotional Materials.

(d) The Franchisee indemnifies the Franchisor, its Affiliates and each of their officers, from any loss, damage, liability or claims made in respect of the content of the Promotional Materials or the use to which the Promotional Materials are put and the indemnity extends to false and misleading content concerning the Hotel and its results or performance.

14.3 Survival

The provisions of this clause 14 shall survive the expiration or termination of this Agreement.

15. Proprietary Rights

(a) The Franchisee shall prominently display the Trade Mark to the exclusion of all other trademarks, indicia, names, logos or other proprietary or commercial names or designations in exterior and interior signage at the Hotel and in all advertising and promotion of the Hotel and the Business. The Franchisee shall not use the Proprietary Rights except as expressly permitted by the Franchisor and directly in connection with the Hotel and the Business.

(b) Except as provided in clause 8(h), the Franchisee shall not register or attempt to register any of the Proprietary Rights or any name or designation comprising or incorporating any of the Proprietary Rights or any part thereof or any other name or designation which is or is in the Franchisor's opinion identical or similar to the Proprietary Rights, without the prior written consent of the Franchisor. The Franchisee shall not use or apply any other name or logo in connection with the Hotel or the Business, without the prior written consent of the Franchisor.

(c) The Franchisee acknowledges and will not question, deny, contest or dispute the exclusive right, title and interest of the Franchisor in and to the Proprietary Rights or the validity of such Proprietary Rights and the Franchisee further acknowledges and will not contest the exclusive rights of the Franchisor to grant to others the right to their use.

(d) The Franchisee shall not copy, alter, modify or adapt the proprietary Software. The Franchisee shall not acquire any intellectual property rights in the proprietary Software other than if a right is provided to the Franchisee, a right to use it in accordance with this Agreement. The Franchisee shall not decompile, reverse engineer or disassemble the Software, nor permit others to do so.

(e) The Franchisee undertakes to respect the Franchisor's intellectual property rights, and shall not supply to any third party information or materials which could be used against the Franchisor's intellectual property rights. If the Franchisee challenges the validity of the intellectual property rights and/or the Franchisor's ownership of the same, the Franchisor may terminate this Agreement if the Franchisee has not fully remedied such default within two (2) months of the date of receipt by the Franchisee of the first written notice from the Franchisor, which specifies the nature of the default, requests the Franchisee to cure such default, and states that failure to remedy would result in termination of this Agreement, then the Franchisor may terminate this Agreement if the Franchisor has sent a second written notice to the Franchisee within the said two (2) months period. The Franchisee shall inform the Franchisor of any infringement of the Software, or any of the Franchisor's intellectual property rights as soon as it becomes aware of such infringements and agrees to provide all relevant information in its possession to the Franchisor so that the Franchisor can efficiently protect its rights. The Franchisor remains free to act or not. The Franchisee undertakes to respect and ensure that third parties do respect all measures of technical protection implemented by the Franchisor.

(f) The Franchisee acknowledges and agrees that it does not have and will have no rights of ownership of the Proprietary Rights and acknowledges that its use of the System pursuant to this Agreement shall not give the Franchisee any right, title or interest in or to the System or the Proprietary Rights and the Franchisee shall not do, cause or authorise to be done anything which will or may impair, damage or be detrimental to the reputation or goodwill associated with the Franchisor or the Proprietary Rights or which will or may adversely affect the value or validity of the Proprietary Rights or bring the Franchisor, the System or the Trade Mark into disrepute. The Franchisee shall notify the Franchisor immediately of any event or occurrence which may impair, damage or be detrimental to the reputation or goodwill associated with the Franchisor or the Proprietary Rights or which will or may adversely affect the value of the Proprietary Rights or bring the Franchisor, the System or the Trade Mark into disrepute. Any rights gained by the Franchisee's use of the Proprietary Rights shall inure to the benefit of the Franchisor. The Franchisee agrees to assign and convey upon the request of the Franchisor and at the Franchisor's expense, in such form as the Franchisor may prescribe, any such rights in the Proprietary Rights as the Franchisee may acquire or be deemed to acquire.

(g) The Franchisee shall reasonably assist the Franchisor upon the Franchisor's request and at the Franchisor's expense, in perfecting and obtaining registration in the name of the Franchisor of any unregistered trademarks or devices the Franchisor has or might acquire. The Franchisee agrees that any rights, privileges and benefits legal or otherwise resulting from the use of any of the Proprietary Rights by the Franchisee shall inure to the Franchisor. The Franchisee shall, upon the Franchisor's request, and at the Franchisor's expense, execute any instrument that may be necessary or appropriate to register, maintain or renew the registration of the Trade Mark in the Franchisor's name and shall keep the Franchisor regularly informed of any cost or expense incurred, or likely to be incurred, in connection with the same. To the extent permitted by the Legal Requirements, the Franchisee shall hold any additional goodwill which attaches to the Proprietary Rights by virtue of the Franchisee's use of the Proprietary Rights as bare trustee for the Franchisor or Accor Group (as the case may be).

(h) The Franchisee shall protect and promote the goodwill attached to the Proprietary Rights.

(i) Upon expiration or termination of this Agreement for any reason whatsoever the Franchisee shall immediately:

(i) cease to be a franchisee and the Franchisee shall immediately cease to use in any manner whatsoever the Proprietary Rights and the System including without limitation any Confidential Information, Standards, Manuals, forms, slogans, signs and anything similar thereto or suggestive thereof used in connection with the Hotel and the Business; and

(ii) cease and refrain from holding the Hotel and the Business out to the general public as premises or as a business within the System or as former premises or a former business within the System and shall take whatever action is reasonably necessary to assure that no use is made of any part of the System by the Franchisee, including by promptly making whatever changes may be necessary in any forms, manuals, slogans, signs, advertising and promotional material in order to comply with the provisions of this clause 15(i) and shall return all Confidential Information and other material incorporating the System to the Franchisor.

(j) In the event that the Franchisee fails to discontinue use of the Proprietary Rights or fails to comply with clauses 15(i) and 19(c) by the tenth (10th) day following expiration or termination of this Agreement (subject to being prevented or delayed by any legal regulation or formality in which case the Franchisee will use its best endeavours to procure discontinuance of use as specified as soon as is possible) then the Franchisor or its duly authorised agents may, upon giving at least ten (10) days' prior written notice to the Franchisee and at the Franchisee's expense, enter upon the Hotel to effect discontinuance of the use of the Proprietary Rights and to take such action as is necessary to carry out the matters set out in clauses 15(i) and 19(c) without being deemed guilty of trespass or any other tort. The Franchisee shall indemnify the Franchisor against any claims arising out of effecting the discontinuance and carrying out the matters set out in clauses 15(i) and 19(c). The Franchisee agrees that the Franchisor is entitled to, to the extent permitted by the Legal Requirements, injunctive or other equitable relief for any violation of the foregoing.

(k) The Franchisee shall include on all signs, stationery and promotional or advertising or other such material used in connection with the Business on which the Trade Mark appears the expression "TM" or such other expression as the Franchisor may consider appropriate so as to indicate all or any of the Franchisor's right title or interest in the Trade Mark.

(l) The obligations of the Franchisee under clauses 15(c), 15(d), 15(f), 15(g), 15(i), and 15(j) shall survive expiration or termination of this Agreement for any reason whatsoever.

16. Accor Group Policies

16.1 Accor Group Policies

(a) The Accor Group has adopted the Accor Group Policies.

(b) The Parties agree that the Hotel is to be managed and operated at all times in accordance with the Accor Group Policies. Any costs and expenses associated with the implementation of the Accor Group Policies at the Hotel shall be borne by the Franchisee.

(c) Without limiting clause 16.1(b), the Franchisee acknowledges and agrees that the Hotel shall at all times and in the Franchisor's opinion:

(i) comply with the Accor Group Policies; and

(ii) adopt all environmental, social and governance programs (including corporate social responsibility programs) the Franchisor and/or its Affiliates may put in place from time to time in the Territory.

(d) Nothing in this clause shall require the Franchisee to comply with the Accor Group Policies to the extent that compliance would be a breach of Legal Requirements.

16.2 PCI DSS

(a) The Franchisee acknowledges that the Accor Group Policies includes a policy whereby it is a requirement that Accor Group Hotels comply with the PCI DSS standards.

(b) The Franchisee shall ensure that, as at the Commencement Date and throughout the Term, the Hotel shall comply with all PCI DSS requirements including obtaining, providing and maintaining each Fiscal Year all necessary and required certifications (including the PCI DSS Attestation of Compliance).

(c) The Franchisee shall, within thirty (30) days following a written request from the Franchisor, provide to the Franchisor a copy of all documentation and certification associated with the Hotel's PCI DSS compliance as provided for in clause 16.2(b).

(d) The Franchisee agrees that the General Manager and all Hotel Employees that deal with and handle credit card information for and on behalf of the Hotel, shall participate in all Accor Group PCI DSS programs (including training, policies, procedures and self-assessments) as notified from time to time by the Franchisor.

(e) If required by the Franchisor, an audit of the Hotel's PCI DSS compliance shall be carried out each Fiscal Year to validate the Hotel's full compliance with PCI DSS.

(f) Any and all costs associated with PCI DSS compliance, including all training and audits under this clause 16.2, shall be borne by the Franchisee.

16.3 Pricing

(a) The Franchisee acknowledges that the Accor Group Policies include a policy whereby rooms are listed on:

(i) Accor Group's CRS;

(ii) Accor Group Websites; and

(iii) applications which the Accor Group may from time to time operate for distribution purposes,

until such time as rooms are no longer available for sale for the same period via any other means including via any third party distribution channels.

(b) The Franchisee shall ensure that the rates of any rooms (or any additional benefits or services made available with any room at a certain rate) are adjusted on:

(i) Accor Group's CRS;

(ii) Accor Group Websites; and

(iii) applications which the Accor Group may from time to time operate for distribution purposes,

to ensure that:

(A) such rates are no higher than the rates at which rooms are made available for sale for the same period through any other means, including via any third party distribution channel; and

(B) any additional benefits or services that are made available at a certain rate, are also made available for the same period at that rate through:

(I) Accor Group's CRS;

(II) Accor Group Websites; and

(III) applications which the Accor Group may from time to time operate for distribution purposes.

(c) The purpose of this clause 16.3 is to ensure that the:

(i) Accor Group's CRS;

(ii) Accor Group Websites; and

(iii) applications which the Accor Group may from time to time operate for distribution purposes, are able to offer favourable rates and nothing in this clause 16.3 is intended to restrict the rates and any additional benefits or services that may be offered through any other means.

(d) The Franchisee acknowledges and agrees to support such policy and not to do anything contrary to such policy.

16.4 IT Compliance

(a) The Franchisee agrees that the information technology equipment at the Hotel shall comply at all times with the IT Standards. The Franchisee is solely responsible for the cost of all information technology equipment at the Hotel including hardware and software and technical support required on behalf of the Franchisee or the Franchisor. Any technical support required by the Franchisor for the Hotel's information technology equipment will be charged by the Franchisor on a time-spent basis at the then applicable rate.

(b) The Franchisee agrees to implement any mandatory software updates or IT security measures that may be required by the Franchisor, from time to time, in order for the Hotel to remain connected to the Accor Group network.

(c) The Franchisee acknowledges that the Accor Group Policies includes a policy against purchasing, installing, or using counterfeit hardware or software. The Franchisee agrees to support this corporate policy and shall not purchase, install or use any software or hardware which:
   (i) does not have a valid and current licence or other legal right to use (for each machine on which it is loaded); or
   (ii) may be in breach of the intellectual property rights of any third party.

(d) Where the Franchisee has installed such unlicensed software or hardware, the Franchisee shall remove such unlicensed software or hardware immediately and indemnify the Franchisor against any loss or claim arising from such unlicensed installation and use.

17. Assignment, Transfer, Appointment of Manager

(a) The Franchisee shall not Transfer its interest in the Hotel, Business and/or Land unless:
   (i) the Franchisee has given at least sixty (60) days' prior written notice to the Franchisor of the Transfer, which notice shall include the relevant details of the proposed transferee;
   (ii) the Franchisee concurrently transfers its entire interest in the Hotel, Business and/or Land to the proposed transferee;
   (iii) the Transfer is to an Acceptable Transferee;
   (iv) as at the date of Transfer, all amounts owing to the Franchisor and its Affiliates by the Franchisee have been paid in full; and
   (v) other than in the case of a deemed transferee in accordance with clause 17(d), on or prior to the date of Transfer, the transferee enters into a written agreement with the Franchisor, in such form as the Franchisor reasonably requires, agreeing, from the date of such Transfer, to be bound by the terms and conditions of this Agreement and to assume and perform all of the Franchisee's obligations under this Agreement.

   For the avoidance of doubt, the Franchisee may only Transfer its rights and obligations under this Agreement and not its rights only. If the Parties cannot agree whether a proposed transferee is an Acceptable Transferee, such dispute may be referred for Expert Determination.

(b) If, at any time, the Franchisee is no longer an Acceptable Transferee, the Franchisee is in default of its obligations under this Agreement if the Franchisor gives written notice to the Franchisee, within 90 days of the Franchisor having actual knowledge, that the Franchisee is no longer an Acceptable Transferee. If the Parties cannot agree whether the Franchisee is an Acceptable Transferee, such dispute may be referred for Expert Determination.

(c) As a condition precedent to the approval of the prospective transferee as an Acceptable Transferee under clause 17(a)(iii), the Franchisee shall fully disclose to the Franchisor all information which may reasonably be requested by the Franchisor (including, without limitation, current financial information

on and percentage ownership of all stockholders or partners or all joint venturers of the prospective transferee).

(d) In relation to any change in the Control of the Franchisee, other than as a result of a change in Control of an entity listed on an internationally recognised stock exchange as a result of transfers of a publicly traded shares or the appointment of directors by the shareholders, the following provisions shall apply:

(i) the Franchisee shall give at least 60 days' prior written notice of any change in the Control of the Franchisee, which notice shall include all relevant details of the proposed transaction;
(ii) as at the date of the Transfer, all amounts owing to the Franchisor and its Affiliates by the Franchisee have been paid in full; and
(iii) as a consequence of any change in Control of the Franchisee, the Franchisee shall continue to be an Acceptable Transferee.

If, as a consequence of any change in Control under this clause 17(d), the Franchisee is no longer an Acceptable Transferee, the Franchisee is in default of its obligations under this Agreement if the Franchisor so elects within ninety (90 days) of it having actual knowledge that the Franchisee is no longer an Acceptable Transferee. If the Parties cannot agree whether the Franchisee is an Acceptable Transferee, such dispute may be referred for Expert Determination.

(e) Notwithstanding its obligations under clause 17(d), the Franchisee shall, as soon as practicable, and in any event no more than 90 days from the date of such change, inform the Franchisor in the event of any material change to its ownership at any time during the Term. For the purposes of this clause 17(e), a "**material change**" shall be a change that:

(i) impacts 25% or more of the total direct or indirect shareholding of the Franchisee; and/or
(ii) bestows a power on any individual to direct or cause the direction of the management and policies of the Franchisee.

(f) The Franchisee shall not grant a Security Interest over its interest in the Hotel or this Agreement unless:
(i) all amounts owing at that time to the Franchisor or its Affiliates by the Franchisee (whether under this Agreement or otherwise) have been paid in full;
(ii) the "loan-to-value" ratio is less than 75%;
(iii) the proposed holder of the Security Interest is not a Sanctioned Person; and
(iv) the proposed holder of the Security Interest enters into a Non-Disturbance Deed with the Franchisee and the Franchisor.

(g) The Franchisee may appoint any person, entity or group (including a hotel management company) to manage the Hotel and/or the Business on behalf of the Franchisee (including to ensure compliance with the Franchisee's obligations under this Agreement) provided that:
(i) prior to any such appointment, the Franchisee obtains the prior written approval of the Franchisor to the appointment of such person, entity or group to ensure that the qualifications of such person, entity or group is in accordance with the Standards and complies with clause 17(g)(ii) below; and
(ii) such person, entity or group is not, in the opinion of the Franchisor, a person, entity or group directly or indirectly engaged or involved in the operation or management of any short–term accommodation competitive to the Franchisor.

(h) The Franchisor shall have the right to assign its rights and obligations under this Agreement to:
(i) any person who is a successor or assignee of the Franchisor which may result from any merger, amalgamation, consolidation, assign or reorganisation of the Franchisor or disposition of a component of the Accor Group, or the assignee is a person who (either alone or together with its Affiliates) acquires all, or substantially all, of the assets of the Franchisor; or
(ii) any of the Franchisor's Affiliates,

provided that the assignee (either alone or together with its Affiliates) assumes all of the Franchisor's rights and obligations under this Agreement and provided further that the assignee has the right to the Brand. From the date of such assignment, the Franchisor's liabilities and rights under this Agreement shall terminate (other than those liabilities and rights accruing up to that time). The Franchisor may

assign its rights to receive fees or reimbursables to any person, or otherwise obtain any corporate financing.

18. Relationship of Parties

(a) Nothing under this Agreement nor any agreements, instruments, documents or transactions contemplated by or referred to in this Agreement shall be construed as making the Parties partners or joint venturers or render either Party liable for any of the debts or obligations of the other Party or an agent of the other Party or as creating any similar relationship and each Party agrees that it will not make any assertion, contention, claim or counterclaim to the contrary in any action, suit or other proceedings involving the Franchisor and the Franchisee. The Franchisee shall exclusively and independently operate the Business with its inherent risks and the Franchisee shall be solely responsible for any liabilities resulting from or arising out of such operation.

(b) The Franchisee shall in no way be considered as being an agent or representative of the Franchisor in any dealing which the Franchisee may have with any third party and the Franchisee shall not act for or make any representations on behalf of the Franchisor in any such dealings and shall have no power to contract on behalf of the Franchisor. Whenever the Franchisee describes its relationship to the Franchisor it shall make it clear that it is not an agent or representative or other person having authority to make contracts or incur obligations binding on the Franchisor.

(c) The Franchisee hereby waives and renounces any right to receive any compensation or benefit of any kind from the Franchisor under any Legal Requirements, including any commercial agency law or similar laws, in connection any with financial or non-financial benefits that may accrue to the Franchisor, during or subsequent to the expiration or termination of this Agreement, through any activities (whether on behalf of the Franchisor or otherwise and whether in relation to the operation of the Hotel utilizing the System) of the Franchisee during the Term of this Agreement.

19. Termination

(a) The Franchisor may terminate this Agreement immediately, without giving the Franchisee an opportunity to cure the default (except as required by Legal Requirements, effective upon delivery of written notice to the Franchisee (or such later date as required by applicable Legal Requirements), if any of the exceptions under Section 15 of the Enforcement Decree of the Franchise Act (Korea) in effect from time to time occur, which as at the Effective Date consist of the following events:

(i) a petition for bankruptcy is filed with respect to the Franchisee (either by the Franchisee or by a third party), the Franchisee is adjudicated bankrupt, or rehabilitation or foreclosure proceedings commence against the Franchisee;

(ii) there occurs a suspension of payment of notes and cheques issued by the Franchisee due to an Insolvency Event;

(iii) the Franchisee cannot continue with the operation of the Hotel utilizing the System in the Territory due to a Force Majeure Event;

(iv) the Franchisee clearly damages the Franchisor's reputation or credit, and causes significant harm to the Business, by receiving an Administrative Order for violating the Legal Requirements relating to the operation of the Hotel, including:

(A) an Administrative Order requiring the Franchisee to remedy the violation;

(B) an Administrative Order imposing penalty surcharge or fine on the Franchisee for the violation; or

(C) an Administrative Order mandating suspension of operation of the Hotel and the Business under the Brand;

(v) the Franchisee violates any Legal Requirements relating to the operation of the Hotel and the Business under the Brand and receives a cancellation order of qualifications, licence, or approval or a business suspension order exceeding fifteen (15) days or other Administrative Order which in nature cannot be corrected; for the sake of clarity, this clause 19(a)(v) will not apply if the Administrative Order issued can be readily corrected by payment of a fine;

(vi) if after having cured a breach under this Agreement pursuant to the request from the Franchisor, the Franchisee subsequently repeats the same breach within a period of twelve (12) consecutive months despite having been notified by the Franchisor in the notice of request to cure the initial breach that this Agreement could be terminated without opportunity to cure in the event that a subsequent breach of the same nature occurred after the cure by the Franchisee of the initial breach;
(vii) if the Franchisee has been subjected to criminal punishment for an act related to the operation of the Hotel and the Business under the Brand;
(viii) any acts, errors or omissions of the Franchisee imminently threaten public safety or health while operating the Hotel and the Business under the Brand, and it is difficult for the Franchisor to await an Administrative Order; or
(ix) the Franchisee suspends operation of the Hotel and the Business under the Brand for a period of seven (7) or more consecutive days without justifiable cause (as determined by the Franchisor).

(b) If the Franchisee is in default of this Agreement and has not fully remedied such default within two (2) months of the date of receipt by the Franchisee of the first written notice from the Franchisor, which specifies the nature of the default, requests the Franchisee to cure such default, and states that failure to cure would result in termination of this Agreement, then the Franchisor may terminate this Agreement if the Franchisor has sent a second written notice to the Franchisee within the said two (2) month period. The Franchisor may elect any other right or remedy available to the Franchisor under this Agreement, at law, or in equity.
For the purpose of this clause 19(b), default shall include, but is not limited to, the following events:
(i) the Franchisee has failed to satisfy the Franchisee Conditions Precedent by the Cut-Off Date (or any agreed extended Cut-Off Date);
(ii) the Franchisee fails to perform or observe any of the covenants stipulated in clause 8;
(iii) the Franchisee fails to perform or observe any of the covenants stipulated in clause 8A; or
(iv) at any time the Franchisee fails or neglects to perform or observe any of its obligations under this Agreement.

(c) Upon the expiration or termination of this Agreement for any reason whatsoever, and without limiting any other provision of this Agreement, all amounts due and owing between the Parties under this Agreement accrued up to the Termination Date shall become immediately due and payable and all rights and licences granted to the Franchisee under this Agreement shall cease immediately to be of any force and effect and the Franchisee (unless permitted by another agreement) shall immediately:
(i) cease to use any Accor Guest Data, which does not also qualify as Hotel Guest Data, to which they may have had access to under this Agreement, either through AccorConnect or the Applications;
(ii) cease all use of the System, including without limitation cease to use or allow any third party to use any of the Proprietary Rights, Confidential Information, Standards, Manuals and all methods, procedures and techniques associated therewith;
(iii) cease to claim or represent orally or in writing that it is a franchisee or that the Hotel or the Business are in any way connected to the Franchisor, subject to any applicable Legal Requirements and take all such actions and steps as may be necessary or as the Franchisor directs so as effectively to de–identify the Hotel and distinguish the Franchisee's business from its former public and marketing image as the Business and so as not represent, indicate or suggest an association or connection with the Franchisor or the System;
(iv) cease to use or allow any third party to use any of the logos, symbols, devices, insignia, slogans or other terms indicating the carrying on of the Business and used in connection with the System;
(v) remove or alter all relevant signs, so as to distinguish such signs from those of the Franchisor; and
(vi) immediately upon demand by the Franchisor deliver up to the Franchisor all Manuals, programs, Confidential Information, Standards and any items or materials in its possession or control which were provided by the Franchisor and shall not retain any copies of the same.
The obligations of the parties under this clause 19(c) shall survive the expiration or termination of this Agreement for any reason whatsoever.

(d) Each Party acknowledges that the other Party has the right (in addition to its termination rights under this Agreement) to sue for any damages sustained by the non-defaulting Party as a result of a breach by the defaulting Party of its obligations under this Agreement and it is expressly acknowledged that such right (and the obligations of the Parties) survive the expiration or termination of this Agreement. Where the defaulting Party is the Franchisee, the Franchisee further acknowledges that the Franchisor has the right to also sue for any damages sustained by Accor Group or any other Affiliate of the Franchisor or Accor Group.

(e) The Franchisee acknowledges and agrees that the Franchisor has made substantial and valuable investment in developing and maintaining the goodwill and reputation in the Brand and System.

(f) If the Franchisee fails to comply with any provision of this Agreement, then, without prejudice to any rights of action or remedies of the Franchisor in respect of the breach, if the Franchisee fails to correct the breach within fourteen (14) days of receiving written notice from the Franchisor to do so, the Franchisor may suspend or limit the Franchisee's right to participate in all or any of the following, until the breach is corrected:
(i) the listing of the Hotel in advertising for the Brand or the System;
(ii) the listing of the Business in Accor Group or third party directories;
(iii) the Franchisee's use of and the listing of the Business in the Central Reservation System; or
(iv) the listing of the Business on any Accor Group Websites.

(g) In the event of material or substantial damage or destruction to any part of the Hotel, the Franchisor can terminate this Agreement by thirty (30) days prior written notice to the Franchisee (or by giving such greater notice as the Franchisor may decide), such termination to take effect from the expiration of such thirty (30) day period (or such notice period as the Franchisor may decide). Termination in accordance with this clause 19(g) will be without prejudice to the rights of the Franchisor or the Franchisee arising prior to such termination of this Agreement.

(h) No termination notice shall result in the termination of this Agreement if a bona fide dispute with respect to any alleged default or any other event entitling a Party to terminate this Agreement, has arisen between the Parties and such dispute has been submitted, prior to expiration of any termination notice, to Expert Determination, mediation or arbitration in accordance with clause 22.17.

(i) On or before the Effective Date, the Franchisee and the Hotel Brand Consultant have entered into a Hotel Consultancy Services Agreement relating to the Hotel and the Franchisee acknowledges and agrees that any breach of that Hotel Consultancy Services Agreement constitutes an event of default by the Franchisee under this Agreement.

(j) Notwithstanding clauses 19(a) to 19(i), and notwithstanding any declaration of a Force Majeure Event pursuant to clause 21:

(i) if at any time during the Term a Party and/or:
(A) any Controlling shareholder of a Party; and/or
(B) an ultimate beneficial owner of that Party,
becomes a Prohibited Person, then if the Party who is in default of this Agreement has not fully remedied such default within two (2) months of the date of receipt of the first written notice from the other Party, which specifies the nature of the default, requests the Party in default to cure such default, and states that failure to cure would result in termination of this Agreement, then the other Party may terminate this Agreement if the other Party has sent a second written notice to the Party in default within the said two (2) month period;

(ii) if at any time during the Term:
(A) any shareholder of a Party that holds 25% or more of the total direct or indirect shareholding in a Party; and/or
(B) a director of that Party,
becomes a Prohibited Person, if steps are not taken to:
(1) remove or replace that shareholder as a shareholder of the relevant Party; or

(2) replace that person as a director of the relevant Party,

within two (2) months following written notice from the non-defaulting Party, which specifies the nature of the default, requests the Party in default to cure such default, and states that failure to cure would result in termination of this Agreement, then such other Party may terminate this Agreement if the other Party has sent a second written notice to the Party in default within the said two (2) month period;

(iii) termination under this clause 19(j):
  (A) does not entitle either Party to consequential or special damages; and
  (B) is without prejudice to any rights of the Parties relating to any antecedent breach, other than as a consequence to the termination of this Agreement; and

(iv) for the purposes of this clause 19(j), "**Prohibited Person**" shall mean:
  (A) a Sanctioned Person; or
  (B) a person or entity that is prohibited, by Legal Requirements or the direction of a Governmental Authority, from:
    a. entering into or being in a contractual relationship, including in connection with this Agreement; or
    b. holding the role of director.

20. Representations and Warranties

(a) In order to induce the Franchisor to enter into this Agreement, the Franchisee hereby makes the following continuing representations and warranties:

(i) the execution and performance of this Agreement is permitted by the legal constituent documents of the Franchisee, and this Agreement has been duly authorised, executed and delivered by it, and constitutes the Franchisee's legal, valid, binding and enforceable obligations;

(ii) the Franchisee has independently investigated the risks of the Business, including current and potential market conditions, competitive factors and risks and has made an independent evaluation of all such facts;

(iii) the Franchisee acknowledges and understands that no assurance or warranty, express or implied, has been given to the Franchisee by the Franchisor or any of the Franchisor's Affiliates as to the potential success of the Business contemplated by this Agreement or the profits that may be achieved;

(iv) neither the consummations of the actions contemplated by this Agreement on the part of the Franchisee to be performed, nor the fulfilment of the terms, conditions and provisions of this Agreement, conflicts with or will result in the breach of any of the terms, conditions or provisions of, or constitute a default under, any agreement, indenture, instrument or undertaking to which the Franchisee is a party or by which it is bound;

(v) the Franchisee's entry into and performance under the terms of this Agreement will not conflict with or infringe the rights of any third party or cause the Franchisee to be in breach of any obligations to a third party (including under any other agreement to which the Franchisee is a party);

(vi) the Franchisee and its Relevant Parties are not Sanctioned Persons or the subject of, or participating in, any disclosed legal actions under any Anti-Corruption Laws, Money Laundering Laws or Sanctions Laws;

(vii) the Franchisee acknowledges and agrees to, from time to time, comply with the Franchisor's know-your-counterparty process and provide such information as the Franchisor may reasonably require in this regard;

(viii) the Franchisee is entitled to possession and occupation of the Hotel and the Land by virtue of its ownership or lease or other occupancy without restrictions that would interfere with anything contemplated under this Agreement and the construction and development of a Hotel is permitted on the Land according to the local zoning requirements;

(ix) the Franchisee shall pay or cause to be paid, when due, all taxes attributable to the Hotel and the Land;

(x) the Franchisee is registered under all applicable Legal Requirements (including franchising laws) in the Territory; and

(xi) all approvals, licences and authorisations of any Governmental Authority or of any landlord or mortgagee or third party or required by any Legal Requirement, which may be necessary for the operation of the Hotel, have been obtained or shall, prior to the Commencement Date, be obtained and the Franchisee further covenants that such approvals, licences and authorisations are maintained in full force and effect.

(b) In order to induce the Franchisee to enter into this Agreement, the Franchisor hereby makes the following continuing representations, covenants and warranties:

(i) the execution of this Agreement is permitted by the legal constituent documents of the Franchisor and this Agreement has been duly authorised, executed and delivered by it; and

(ii) neither the consummation of the actions contemplated by this Agreement on the part of the Franchisor to be performed, nor the fulfilment of the terms, conditions and provisions of this Agreement, conflicts with or will result in the breach of any of the terms, conditions or provisions of, or constitute a default under, any agreement, indenture, instrument or undertaking to which the Franchisor is a party or by which it is bound.

21. Force Majeure

(a) If either the Franchisor or the Franchisee is unable to perform in whole or in part any obligations under this Agreement by reason of a Force Majeure Event:

(i) such failure shall not be treated as a breach of this Agreement for as long as the Claiming Party is unable to perform; and

(ii) no liability shall arise from such non-performance provided that nothing herein, except where expressly provided otherwise under this Agreement, will excuse or relieve any obligation to make all payments when due.

(b) The Claiming Party shall notify the other Party in writing as soon as reasonably practicable of the occurrence of a Force Majeure Event and provide all details of such event, including its cause and impact on the execution of obligations under this Agreement.

(c) Notwithstanding any other provision in this Agreement, if at any time it becomes necessary in the Franchisor's reasonable opinion to cease or alter operation of the Hotel in order to protect the health, safety and welfare of the guests and/or employees of the Hotel, or the Hotel itself, for reasons caused by a Force Majeure Event, then in such event the Franchisor may direct the Franchisee to close and cease or alter operation of all or part of the Hotel, reopening and commencing or resuming operation when the Franchisor deems that such may be done without jeopardy to the Hotel, its guests and employees.

(d) Except as expressly provided in this Agreement, in the case of a Force Majeure Event, the time periods set out in this Agreement are extended for the period of any delay due to a Force Majeure Event taking into account the effect of the Force Majeure Event on the Hotel and all matters considered relevant by the Franchisee and the Franchisor.

(e) In the event of any conflict between this clause 21 and clause 19(g), then clause 19(g) shall prevail.

22. General

22.1 Definitions

Capitalized terms used in this Agreement have the meanings given to them in:

(a) Schedule of Commercial Terms; and

(b) Schedule 1,

unless the context otherwise requires.

22.2 Interpretation

In this Agreement, unless the contrary intention appears:

(a) the singular includes the plural and vice versa;

(b) a reference to an article, clause, paragraph, annexure, exhibit or schedule is a reference to an article, clause, paragraph, annexure, exhibit or schedule of this Agreement, unless specific reference is made to the article, clause, paragraph, annexure, exhibit or schedule of another document or instrument;

(c) the word "person" includes a firm, body corporate, trust, an unincorporated association or an authority and to the person's executors, administrators, successors, substitutes (including persons taking by novation) and assigns;

(d) the word "company" or "entity" includes a body corporate, trust, partnership or other entity;

(e) an agreement, representation or warranty in favour of two or more persons is for the benefit of them jointly and severally;

(f) an agreement, representation or warranty on the part of two or more persons binds them jointly and severally;

(g) specifying anything in this Agreement after the word "includes" or a derivative does not limit what else is included;

(h) a reference to a statute, ordinance, code or other law includes regulations and other instruments under it and consolidations, amendments, re-enactments or replacements of any of them;

(i) a reference to any one gender includes each other gender (as the case may require);

(j) a reference to an accounting term is to be interpreted in accordance with the Accounting Principles;

(k) a reference to any thing (including, without limitation, the Land) is a reference to the whole and each part of it and a reference to a group of persons is a reference to all of them collectively, to any two or more of them collectively and to each of them individually;

(l) a reference to discretion means absolute and unfettered discretion;

(m) all exhibits, schedules and annexures attached to this Agreement are by reference made part of this Agreement;

(n) this Agreement does not constitute a lease and cannot be interpreted as a lease agreement

(o) no provision of this Agreement shall be construed against or interpreted to the disadvantage of any Party by reason of such Party having or being deemed to have structured or dictated such provision;

(p) where a Party has a unilateral right under this Agreement it may be exercised in an absolute and unfettered manner; and

(q) headings are inserted for convenience and do not affect the interpretation of this Agreement.

22.3 Notices

(a) All notices shall be:
  (i) in the English language;
  (ii) in writing (email can be used so long as a formal letter is attached to the email and a hard copy of the formal letter is sent to the other Party within five (5) days after the email is sent by any of the methods set out in this clause 22.3);
  (iii) signed by a person duly authorised by the sender; and
  (iv) addressed to the recipient at its registered office (from time to time) or if no such registered office address applies then to the address detailed in Schedule of Commercial Terms or such other address as a Party may from time to time notify in writing to the other Party.

(b) Without limiting any other means by which a Party may be able to prove that a notice or other communication has been received by another Party, a notice or other communication shall be deemed to be duly received if:
  (i) sent by hand or courier, when left at the address of the recipient;
  (ii) a notice or other communication is served by hand or courier on a day which is not a working day, or after 5.00 pm on a working day, such notice or communication shall be deemed to be received by the recipient at 9.00 am on the next working day; or
  (iii) sent by email, the earlier of:
    (A) the time that the sender receives an automated message from the intended recipient's information system confirming delivery of the email;
    (B) the time that the email is first opened or read by the intended recipient, or an employee or officer of the intended recipient; and

(C) two (2) hours after the time the email is sent (as recorded on the device from which the sender sent the email) unless the sender receives, within that two (2)-hour period, an automated message that the email has not been delivered,

except that a notice or other communication that is served by email received on a day which is not a working day, or after 5.00 pm on a working day, such notice or communication shall be deemed to be received by the recipient at 9.00 am on the next working day.

22.4 Responsible and Ethical Business Conduct

(a) The Franchisees agrees and undertakes that it, and its Relevant Parties, shall implement appropriate policies and procedures to comply with the Anti-Corruption Laws, the Money Laundering Laws and the Sanctions Laws.

(b) Without limiting the foregoing, the Franchisee represents and warrants (as a continuing representation and warranty) that:

(i) it does not and shall not, in connection with the Hotel and any activity performed in accordance with this Agreement, solicit, give, promise or offer to give or promise any financial consideration or valuable item (including in kind) with the objective of:

(A) influencing any act or decision; or

(B) inducing to perform or fail to perform any act or decision such as using influence,

with the purpose of helping to obtain any favor, authorization or permission; and

(ii) the Franchisee and its Relevant Parties are not:

(A) Sanctioned Persons; or

(B) the subject of or participating in any disclosed legal actions under any Anti-Corruption Laws, Money Laundering Laws or Sanctions Laws.

(c) The Franchisee shall immediately inform the Franchisor if it or any of its Relevant Parties become a Sanctioned Person during the Term.

22.5 Partial Invalidity

In the event that any phrases, sentences, clauses or paragraphs contained in this Agreement are declared invalid by a final and unappealable order, decree or judgment of any court, this Agreement will be construed as if such phrases, sentences, clauses or paragraphs had not been inserted unless such construction would substantially destroy the benefit of the bargain between the Franchisor and the Franchisee.

22.6 Legal Costs and Stamp Duty

Each Party is responsible for its own legal costs and expenses of and incidental to the preparation of this Agreement. The Franchisee is responsible for the payment of all stamp duty on and arising out of the provisions of this Agreement.

22.7 Interest

If monies payable by a Party under this Agreement are not paid when due, such monies shall bear interest at the Rate of Interest computed from the date they become due to the date of payment and capitalised on the first (1st) day of each month and shall be payable on demand.

22.8 Survival

Any covenant, term or provision of this Agreement which, in order to be effective, shall survive the expiration or termination of this Agreement, will survive any such termination or expiration.

22.9 Further Assurances

The Parties shall execute and deliver all such agreements and other instruments and shall take such action as may be necessary to make this Agreement legally effective, binding and enforceable as between them and as against third parties.

22.10 Waiver

The waiver of any term or condition on any one occasion will not be deemed a waiver thereof on any other occasion. No term or condition of this Agreement and no breach of this Agreement can be waived, altered or modified except in writing signed by the Party waiving it.

22.11 Counterparts

This Agreement may consist of a number of counterparts and the counterparts taken together constitute one and the same instrument.

22.12 Approval or Consent

(a) Where this Agreement refers to approval or consent being required, such approval or consent to be effective must be given beforehand and in writing and, unless expressly permitted under this Agreement, may not be unreasonably withheld or conditioned and, unless timing is expressly stated, must not be unreasonably delayed.

(b) The Franchisor shall not be responsible for any matters arising from the Franchisee's failure to grant approvals, provide funds or perform any other obligations as required under this Agreement.

22.13 Cumulative Rights and Remedies

(a) Except as expressly provided in this Agreement, the rights of a Party under this Agreement are in addition to and do not exclude or limit any other rights or remedies provided by any Legal Requirement.

(b) The remedies granted herein to the Franchisor are cumulative and are not intended to be exclusive of any other remedies which it may lawfully be entitled to in case of any breach or threatened breach of the terms and provisions of this Agreement.

22.14 Entire Agreement

(a) This Agreement constitutes the entire agreement of the Parties with respect to the subject matter of this Agreement.

(b) The Franchisee represents and warrants to the Franchisor that the only representations made by or on behalf of the Franchisor on which it relied on in deciding whether to enter into this Agreement are contained in this Agreement.

22.15 Amendments

This Agreement may not be amended except by a written instrument executed by the Franchisor and the Franchisee, following prior notice, mutual discussion and agreement between the Parties.

22.16 Governing Law

This Agreement is governed by, and shall be construed in accordance with, the laws of the Territory.

22.17 Dispute Resolution

(a) All disputes arising out of or in connection with this Agreement shall be resolved through discussions between the Parties within thirty (30) days after the receipt by one Party of a notice from the other Party of the existence of the dispute.

(b) In the event any dispute is not amicably settled within the thirty (30) day period provided for in clause 22.17(a) (or such longer period as may be agreed in writing by the Parties), then such dispute shall be referred for mediation:
   (i) in accordance with the rules of the SIMC;
   (ii) to be held in Singapore; and
   (iii) to be determined in accordance with the mediation rules of the SIMC for the time being in force, which rules are deemed to be incorporated by reference in this clause 22.17.

(c) In the event any dispute is not:
   (i) amicably settled within the thirty (30) day period provided for in accordance with clause 22.17(a) (or such longer period as may be agreed in writing by the Parties); and
   (ii) resolved through mediation in accordance with clause 22.17(b) within ninety (90) days after the receipt by one Party of a notice from the other Party of the existence of the dispute,

   then such dispute shall be referred for arbitration:
      (A) and such dispute shall be fully and finally resolved by arbitration administered by the SIAC;
      (B) to be held in Singapore;

(C) to be determined in accordance with the Arbitration Rules of the SIAC for the time being in force, which rules are deemed to be incorporated by reference in this clause 22.17.

(d) For the avoidance of doubt, a Party shall not be required to refer any dispute for mediation in accordance with clause 22.17(b) if the arbitration process provided for in clause 22.17(c) also provides for mandatory mediation.

(e) The seat of the arbitration shall be Singapore.

(f) The governing law of this clause 22.17 shall be Singapore law.

(g) The tribunal shall consist of a single arbitrator to be appointed by the president of the court of arbitration of SIAC.

(h) The language of arbitration shall be English.

(i) The arbitration award shall be final and binding upon the Parties.

(j) The liability for the arbitration costs and related costs including the costs of enforcement of the arbitration award shall be determined by the arbitrator.

(k) For the purposes of the New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards of 1958, the Parties agree that the relationship among the Parties is commercial in nature and any disputes between or among the Parties related to this Agreement shall be deemed commercial.

(l) Pending decision of the arbitrator, the Parties shall diligently proceed in accordance with the provisions and terms of this Agreement.

(m) The provisions contained in this clause 22.17 shall survive the expiration and/or termination of this Agreement.

22.18 Interim Relief

The Franchisor may seek injunctive or equitable relief, including restraining orders and preliminary injunctions, in any court of competent jurisdiction. Either Party may request that a court refer the proceedings to arbitration without prejudice to injunctive relief granted by such court.

22.19 Currency

(a) To the extent not expressly provided for in this Agreement, all fees and charges payable to the Franchisor or its Affiliates under this Agreement shall, to the extent permitted by Legal Requirements, be paid in the Currency, or such other currency as may be acceptable to the Franchisor (converted from local currency at the official exchange rate in effect at the time of payment).

(b) If the Franchisee is prevented by a Governmental Authority from making full and complete payments to the Franchisor or its Affiliates in the Currency, the Franchisee will immediately notify the Franchisor and, the Franchisor may, in its sole discretion, do one or more of the following:

(i) accept payments due under this Agreement in any other currency or form permitted by law; and/or

(ii) terminate this Agreement if the currency control or restriction remains in effect for more than ninety (90) consecutive days.

(c) Should the Franchisor elect an alternative payment method as contemplated under clause 22.19(b)(i), this will not relieve the Franchisee of its obligation to make later payments in the Currency and is not a waiver of the Franchisor's right to receive payments in the Currency under this Agreement.

22.20 Third Party Rights

(a) Subject to the provisions of this clause 22.20, the Franchisor's Affiliates may, having in each case obtained the consent of the Franchisor, enforce the terms and accordingly shall have the benefit of those provisions in this Agreement which are, or are stated to be, for their benefit subject to and in accordance with the provisions of any applicable Legal Requirements.

(b) Except as provided in clause 22.20(a), the Parties do not intend that any term of this Agreement shall be enforceable, including to the extent permitted by any Legal Requirement, by any person who is not a party to this Agreement.

23. Special Terms

The terms (if any) set out in Schedule 2 form part of this Agreement.

EXECUTED as an agreement.

AA KOREA HOTEL MANAGEMENT CO., LTD	**KORAMCO URBAN HOTEL GENERAL PRIVATE REAL ESTATE INVESTMENT COMPANY NO. 1**
By:……..	By:……
Name:	Name:
Title:	Title:

WITNESSED

By:……..	By:……
Name:	Name:
Title:	Title:

SCHEDULE 1

DEFINITIONS

Acceptable Transferee	any person to whom the Franchisee proposes to Transfer its interest (direct or indirect) in the Hotel, Business and/or the Land who: (a) has sufficient experience to comply with the obligations in the Franchise Agreement; (b) has sufficient experience to operate a hotel in the Territory to the Standards; (c) has not been convicted of a serious criminal offence or, in the event of a company, the executive personnel of the company have not been convicted of a serious criminal offence; (d) is, in the reasonable opinion of the Franchisor, respectable, responsible and financially sound; (e) satisfies the Franchisor's know-your-counterparty process; (f) is not a Competitor; (g) is not a Sanctioned Person; (h) is not the subject of, or participating in, any disclosed legal actions under any Anti-Corruption Laws, Money Laundering Laws or Sanctions Laws; and (i) is not a person with whom the Franchisor has previously been in material dispute. For the purpose of this definition, asset management companies, collective investment vehicles, real estate investment companies or any of their wholly-owned subsidiaries (collectively "**Investment Companies**") shall be deemed to have satisfied the conditions under (a), (b) and (d) above, provided that this does not constitute a confirmation that such Investment Companies are Acceptable Transferees and shall not, in any way, affect, reduce or prejudice any of the Franchisor's rights under this Agreement (including, without limitation, clause 17 of this Agreement) nor reduce, affect, waive or release any of the Franchisee's obligations under this Agreement (including, without limitation, clause 17 of this Agreement).
AccorConnect	the private communication network of the Accor Group from time to time and as may be known by any other name, which is mandatory to connect the Hotel to CRS, central distribution management systems and sales systems and Applications used by the Accor Group.
Accor Group	Accor S.A. and/or its Affiliates.
Accor Group Hotels	all hotels which are operated, licensed and/or franchised by any member of the Accor Group.
Accor Group Policies	such policies, principles, standards and commitments developed for the Accor Group Hotels (including the Hotel), and that may be adopted, from time to time, by the Accor Group and which include: (a) the "Ethics and Corporate Social Responsibility Charter", being the Accor Group's code of conduct, setting out the key commitments, fundamental principles, expectations and duties by which all that fall under the Accor Group banner, including the Hotel, are required to follow, available at: ACCOR_charteERSE2024-120924-EN__1_.pdf; (b) the "Human Rights Policy" which clarifies and reaffirms commitments made on the treatment of human beings, describing what the Accor Group expects from all business partners and how such commitments are incorporated into the Accor Group corporate culture, available at: Accor_HUMAN_RIGHTS_POLICY_EN_Sept_2023.pdf;

	(c) the "Responsible Procurement Charter" , including the statements made by the Accor Group to all suppliers and service providers, formalising expectations of all companies with whom the Accor Group has direct or indirect business relationships throughout the value chain and the cornerstone of sustainable commercial relationships to be systematically associated with purchasing or listing contracts in any way associated with the Accor Group, available at: https://group.accor.com/-/media/Corporate/Group/Documents/2023/04/28/Responsible_Procurement_Charter_vEN.pdf; (d) Accor Group Privacy Statements; and (e) such other policies as are applicable in accordance with applicable Accor Group Policies. The Accor Group Policies may be amended, replaced and/or supplemented, from time to time, in the discretion of the Accor Group.
Accor Group Privacy Statements	the privacy statements developed, updated and published by the Accor Group, in particular the customer personal data protection charter available on the Accor Group online reservation website at: https://all.accor.com/information/legal/data-protection.en.shtml.
Accor Group Websites	(a) https://all.accor.com and any other Accor Group distribution website(s) dedicated to the Brand (and any replacement thereof); (b) any final consumer facing websites or applications operated by the Accor Group (including the Accor app); and (c) any other websites and applications the Accor Group may from time to time operate for distribution purposes and which may be granted access to the CRS.
Accor Guest Data	all Guest Data, including Hotel Guest Data, which are obtained or derived by Accor Group, from: (a) guests or other customers of the Hotel and the Business; (b) guests or other customers of any hotel or businesses of operating a hotel or similar facilities or businesses which Accor Group, owns, leases, licenses, operates, manages, franchises, distributes or otherwise supports or promotes, and any customers of any of the facilities associated with such hotels or other properties (including restaurants, golf courses, spas, etc.); and (c) any other sources and databases, including Accor Group Websites or mobile applications, Accor Group direct or indirect reservation channels (Central Reservation System, travel agencies, etc.), Loyalty Programs, Accor Group partners or providers, etc.
Accor Guest Database(s)	one or more databases owned or managed by Accor Group or to which Accor Group has access, either directly or under services agreements, containing Accor Guest Data.
Accor S.A.	a *société anonyme* incorporated under the laws of France, having its registered office at 82 rue Henri Farman, 92130 Issy-les-Moulineaux, France, registered under the Nanterre trade and companies register under number 602 036 444.
Accounting Principles	those accounting principles applicable to the hotel industry which are recognized as generally accepted in the Territory, as modified or amplified by the then current edition of the Uniform System.
Administrative Order	an order issued by a Governmental Authority including an order imposing a fine and/or penalty for non-compliance, and/or which requires the Franchisee to correct such violations.
Affiliate(s) (Affiliate of a person (Subject Person))	any other person that Controls, is Controlled by or is under common Control with the Subject Person. Accor S.A. and any direct or indirect subsidiary of Accor S.A. shall at all times be deemed to be an Affiliate of the Franchisor.

Anti-Corruption Laws	all Legal Requirements relating to bribery or corruption
Applications	all applications referred to in Schedule 3A and/or Schedule 3B and such other applications as may be required from time to time in accordance with the Standards.
Approved Plans and Specifications	the plans and specifications prepared or to be prepared by the Franchisee, in accordance with the HCSA, which detail the Works and as approved by Hotel Brand Consultant.
Benefits	any benefits received by the Franchisor and/or its Affiliates arising from Purchases.
Booked Revenue	Rooms Revenue and all other revenue for services (including service charges and food and beverage revenue), booked as part of and at the time the reservation/booking is made through the Central Reservation System, the PMS or other central reservation systems designated by the Accor Group.
Brand	as defined in the Schedule of Commercial Terms.
Brand Hotels	all hotels operating under the Brand.
Building Systems	the systems and related facilities necessary for the operation of the Hotel, including all life/safety, heating, ventilation, air conditioning, elevator, escalator, telephone, computer, electrical, plumbing, sanitation, laundry, dry cleaning, kitchen and mechanical systems and facilities.
Business	business of short-term accommodation operated at the Hotel.
Business Day	any business day upon which banks are open for business in the city in which the Party receiving any notice under this Agreement is located.
Call Centre	final consumer facing intermediary taking reservations by telephone or e-mail.
Central Reservation System (or CRS)	any central reservation systems as may be designated by the Accor Group from time to time (including any replacement or additional central reservation systems) for use in the operation of the Hotel.
Cluster Service & Overflow	an optional service directing call overflows from the Hotel to a Call Centre.
Commencement Date	as defined in the Schedule of Commercial Terms.
Competitor	any person, entity or group who, in the reasonable opinion of the Franchisor, is engaged directly, or indirectly through an Affiliate, in the operation, licensing, management or franchising of hotels or other short-term accommodation under a recognised (local, regional and/or international) hotel brand or lodging system of hotel competitive to the Franchisor or any member of the Accor Group. However a Competitor excludes: (a) any sovereign wealth fund and/or institutional investor in hotels, hotel brands or lodging systems, such as pension funds, insurance companies, investment banking firms, private equity funds, and publicly-traded funds; or (b) publicly listed real estate investment trusts (and their respective Affiliates), in each case where such investments in hotel brands or lodging systems do not represent more than twenty-five percent (25.0%) of its investments; or (c) a person or an Affiliate of a person that owns or invests in hotels, as opposed to managing, licensing (as licensor) or franchising (as franchisor). A "person" shall not be deemed to be a Competitor merely by virtue of its ownership of any hotels where third parties own those hotels' brands and the rights to methods, designs, processes and arrangements for their operation.
Concept	the unique product and system developed by the Franchisor and/or Accor Group for the Brand for providing to the public, lodging of a standard of service, efficiency, courtesy and cleanliness, utilising distinctive identification schemes, standards, specifications, the Trade Mark and other practices, knowledge,

	expertise, skill and proprietary information for use in the conduct of the Business.
Conditions Precedent	(a) Franchisor Conditions Precedent; and (b) Franchisee Conditions Precedent.
Confidential Information	(a) the contents of this Agreement; (b) the contents of any agreement entered into between Franchisee and the Accor Group in relation to the Hotel; (c) any information relating to the Franchisee or the Franchisor (or its Affiliates); (d) any information relating to the Proprietary Rights; and (e) any information relating to the Hotel.
Control or Controlled	the possession of the power to direct or cause the direction of the management and policies of the controlled entity: (a) through ownership or ultimate ownership of more than fifty percent (50.0%) of all voting or equity securities; or (b) arising by virtue of any shareholder or other agreement by which the relevant person has such power.
Council	Payment Card Industry Security Standards Council or replacement body from time to time.
CPI	the consumer price index (all groups) published by Statistics Korea or any revision or replacement thereof appropriately adjusted
CPI Adjustment	the CPI last published before the commencement of the Fiscal Year in which a calculation is made divided by the CPI last published before the commencement of the Fiscal Year when it was last adjusted, or if it has not been adjusted, the commencement of the of the first Fiscal Year.
Currency	as defined in the Schedule of Commercial Terms.
Data Protection Legislation	any Legal Requirements relating to the privacy, use and Processing of Personal Data, as applicable to the Accor Group and/or the Franchisee including: (a) the General Data Protection Regulation; (b) any laws or regulations implementing European Directive 2002/58/EC concerning the processing of Personal Data and the protection of privacy in the electronic communications sector ("**ePrivacy Directive**"); (c) in relevant EU countries, all relevant Member State laws or regulations giving effect to these Directives or corresponding with this Regulation; and (d) any judicial or administrative interpretation of any of the above, and any guidance, guidelines, codes of practice, approved codes of conduct or approved certification mechanisms issued by any relevant Governmental Authority, in each case, as in force and applicable, and as may be amended, supplemented or replaced from time to time.
Data Protection Principles	the principles and the resulting obligations applied by the Franchisor and the Parties, from time to time, in relation to the collection and Processing of Personal Data and compliance with applicable Data Protection Legislation. During the Term, copies of the Data Protection Principles shall be delivered, from time to time, to the Franchisee. Delivery may be via an access to a Accor Group Website.
Direct Web	final consumer facing websites or applications operated by the Accor Group (including the Accor Group Websites), the Accor app, and any other websites and applications the Accor Group may from time to time operate for distribution purposes.
Effective Date	the date of this Agreement.
EQT	building (or technical) equipment including bathroom fittings, fixed/architectural light fittings, doors, windows, locks, wall and floor

	coverings, fixed joinery, major kitchen and bar equipment, backbone and facility cabling, audio visual and landscaping. EQT includes Accor Group referenced hardware and software which are to be purchased by the Franchisee under this Agreement and in accordance with the Standards. The Franchisor's preferred supplier (if any) shall be made available to the Franchisee.
Expert	having regard to the nature of the determination to be made, an: (a) independent; (b) appropriately qualified; and (c) internationally recognised, expert (with at least ten (10) years' experience in the hospitality industry) as agreed by the Parties and, failing agreement, as appointed by the SIAC.
Expert Determination	in making its determination, the Expert shall act as an expert and not as an arbitrator and the Expert will determine: (a) the manner in which the determination is to be conducted; and (b) who should pay the costs of the determination and, to the extent the Expert does not make such determination, the costs of the Expert shall be shared equally between the Parties and each Party shall pay their own costs. A Party can make submissions in relation to any Expert Determination. Any determination of the Expert shall be final and binding on the Parties.
Expiry Date	as defined in the Schedule of Commercial Terms.
Facilities	as defined in the Schedule of Commercial Terms.
FF&E	all furniture, furnishings, fixtures and equipment required for the proper and efficient operation of the Hotel in accordance with the Standards, including lobby furniture, carpeting and floor coverings, draperies, wall coverings, artwork, bedspreads, television sets, radios, office furniture and equipment such as safes, cash registers and accounting, computer, duplicating and communication equipment, telephone equipment, guest room furniture, specialized hotel equipment such as equipment required for the operation of kitchens, laundries, the front desk, dry cleaning facilities, bars and cocktail lounges and decorative lighting, material handling equipment and cleaning and engineering equipment and all other furniture, furnishings, fixtures, equipment, apparatus and personal property needed for such purposes or for the operation of the Hotel, but excluding: (a) Building Systems; (b) Operating Supplies and Equipment; and (c) Proprietary Rights.
Fiscal Year	each calendar year (commencing from 1 January and ending on 31 December), provided that: (a) the first Fiscal Year shall be the period commencing on the Commencement Date and ending on December 31 of the complete calendar year after the year in which the Commencement Date occurs; and (b) the final Fiscal Year may be less than a full calendar year.
Force Majeure Event	an event of an extraordinary nature, which was not caused by the Party claiming for it ("**Claiming Party**") and which was beyond the reasonable control of the Claiming Party. Force Majeure Event includes any: (a) strike, labour walkout or other labour interruption/disputes; (b) acts of God; (c) failure of power; (d) civil commotion, riots or insurrections; (e) acts of terrorism; (f) war/invasion; (g) restrictions arising from Sanctions Laws;

	(h) damage or destruction; (i) earthquake, hurricane, flood, fire; (j) material disruption in airline or other transportation systems; (k) act of a Governmental Authority; (l) local, regional or world threats or outbreak of infectious disease(s), epidemic or pandemic disease(s); and (m) travel advisories or alerts issued by Governmental Authority or any international agency or body. For the avoidance of doubt, the Parties agree that in no event shall "Force Majeure Event" include any Party's failure to pay or reimburse any amounts due hereunder as and when due, including any amounts due to third parties.
Franchise Disclosure Document	a certain document registered by the Franchisor with the Korean Fair Trade Commission in accordance with the requirements stipulated under the applicable Legal Requirements (including the Korean Fair Transactions in Franchise Business Act, as amended from time to time, or any successor legislation) and provided by the Franchisor to prospective franchisees of the Accor Group Hotels.
Franchisee Conditions Precedent	the Franchisee: (a) has fully paid all fees and amounts which are due and payable to the Franchisor or its Affiliates under the HCSA; (b) fully completing the Works to the satisfaction of the Franchisor and the Franchisee (and as provided for in the HCSA) and with the Hotel being fully in line with the Standards and the PIP; and (c) all public areas and one hundred percent (100.0%) of all rooms having been completed.
Franchisee's Data	the data relating to the: (a) employees of the Hotel; and (b) suppliers and partners of the Hotel and/or the Business that are not also suppliers and partners of the Franchisor or its Affiliates or of the hotels managed or franchised by the Franchisor or its Affiliates. Franchisee's Data may include Personal Data.
Franchisor Conditions Precedent	the Franchisor obtaining registration of the Franchise Disclosure Document with the Korean Fair Trade Commission and satisfying the requirements stipulated under the applicable Laws (including the Korean Fair Transactions in Franchise Business Act, as amended from time to time, or any successor legislation).
Franchisor Indemnified Parties	Franchisor and its Affiliates and their respective directors, officers, employees, representatives and consultants, and each of their respective successors and assigns.
Global Distribution Systems (or GDS)	distribution systems enabling transactions between travel industry service providers.
General Data Protection Regulation (or GDPR)	Regulation 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of Personal Data and on the free movement of such data, and repealing Directive 95/46/EC.
General Manager	the general manager from time to time of the Hotel.
Governmental Authority	any governmental, administrative, fiscal, or judicial body, department, commission, authority, tribunal, agency or entity in any part of the world, including (as applicable) any local, national or multinational agency, department, official, parliament, public or statutory person or any government or professional body, regulatory or governmental authority, board or other body responsible for administering legislation.
Group Booking	Accor Group distribution platforms, deployed on eligible hotels, for management of distributed group request for proposals coming from the:

	(a) sales office; (b) Accor Group Websites; and (c) applications which the Accor Group may from time to time operate for distribution purposes.
Guest Data	all Personal Data and other data (including data relating to entities), relating to guests or customers such as: (a) identification and contact information (including names, e-mail addresses, phone numbers, postal addresses, facsimile numbers, age, nationality, passport or IP numbers); (b) purchase histories and records; (c) activities information in relation to websites, mobile applications, social media or chatbot; (d) preferences and profiles; and (e) membership in any loyalty or recognition program.
Hotel	as defined in the Schedule of Commercial Terms.
Hotel Brand Consultant	AAPC (Thailand) Limited.
Hotel Consultancy Services Agreement (or HCSA)	the hotel consultancy services agreement entered into between the Franchisee and the Hotel Brand Consultant and dated on or about the Effective Date.
Hotel Databases	databases owned and managed by the Franchisee, either directly or under services agreement, containing Franchisee's Data and Hotel Guest Data.
Hotel Employee(s)	all employees employed at or for the Hotel.
Hotel Guest Data	(a) all Guest Data gathered by the Hotel based on the guest's stay or information provided by the guest during or in relation to such stay at the Hotel; and (b) raw booking data of the guests (title, name, first name, telephone number, e-mail, booking status, check-in/check-out dates, booking origin, number of adults/children, number of nights, number of rooms, purpose of the stay) obtained by the Franchisee through Accor Group direct or indirect reservation channels.
Hotel Name	as defined in the Schedule of Commercial Terms.
Improvements	any augmentation, modification or improvement to any part of the System, or the methods, procedures or techniques employed by the System.
Initial Term	as defined in the Schedule of Commercial Terms.
Insolvency Event	any of the following: (a) the Franchisee files a petition for reorganization or dissolution under any bankruptcy, insolvency or similar law; (b) the Franchisee consents to, or has instituted or presented against it, a petition under any bankruptcy, insolvency or similar law or fails to vacate any order approving such petition within ninety (90) days from the date the order is entered; (c) the Franchisee is adjudicated to be bankrupt, insolvent or of similar status by a court of competent jurisdiction, or has a resolution passed for its winding-up, official management or liquidation; (d) the Franchisee has a receiver, trustee, liquidator or similar authority appointed over all or a substantial part of its assets and such appointment is not dismissed within ninety (90) days from the date of appointment; (e) execution, distress, attachment, sequestration or other legal process is levied or enforced against the Hotel, the Franchisee, or any material personal property in the Hotel, unless such execution or other legal process is frivolous or vexatious and is discharged, stayed or dismissed within thirty (30) days of commencement;

	(f) the Franchisee makes a general assignment, arrangement, composition or compromise with or for the benefit of its creditors in connection with a modification of its indebtedness as a result of any actual or anticipated financial difficulties; or (g) a suit to foreclose any lien, mortgage, or security interest in the Hotel or any material property at the Hotel, or any security interest in the Franchisee is instituted and not vacated within ninety (90) days.
Internet Distribution Systems (or IDS)	final consumer facing online travel agencies that are connected to the CRS through an internet distribution system platform.
IT Standards	such information technology specifications and equipment as recommended or approved by the Accor Group from time to time to enable the operation of the Hotel and/or the Business in accordance with this Agreement and the Standards, including: (a) cabling and wiring; (b) network equipment; (c) hardware including computers, printers, phones, etc.; (d) software; (e) private automatic branch exchange for any internet and telephone type systems; (f) electronic key system of the Hotel; (g) TV systems; (h) Integrated Property Management System (iPMS or PMS); (i) Point of Sale System (POS); (j) information technology security; (k) guest technology; and (l) the methods relating to the installation of the information technology equipment in the Hotel; and (m) audio-visual standards.
Legal Requirements	all applicable laws, statutes, ordinances, codes, orders, rules, regulations, permits, licences and authorisations, whether local, national or international (as may be amended or replaced from time to time). To the extent applicable, Legal Requirements includes all Data Protection Legislation. A reference to a statute, ordinance, code or other law includes regulations and other instruments under it and consolidations, amendments, re-enactments or replacements of any of them.
Loyalty Programs	such loyalty, guest recognition and privilege (customer and partner) programs as may apply, from time to time, in Brand Hotels in the Territory.
Loyalty Program Fee	as defined in the Schedule of Commercial Terms.
Management Agreement	the agreement entered into between the Franchisee and the Management Company on 22 January 2026, pursuant to which the Management Company shall operate the Hotel and/or the Business for and on behalf of the Franchisee.
Management Company	Seo Han Tourism Development Co., Ltd.
Manual	the manuals, policies and guidelines devised by the Franchisor and/or Accor Group, as revised or replaced from time to time, and lent by the Franchisor to the Franchisee (either in printed form or electronic media) from time to time, relevant to the Brand.
Meetings and Events Software	the software platform to facilitate efficient booking of group meetings and events at the Hotel.
Metasearch	price comparison websites (with central or regional strategic negotiated accounts (for example, Trivago, Kayak, Tripadvisor) and e-commerce affiliates and partners.
Milestones	as defined in the Schedule of Commercial Terms.

Milestone Dates	as defined in the Schedule of Commercial Terms.
Minor Defects	minor omissions and minor defects: (a) which, in the opinion of the Franchisor, do not prevent the Hotel or the Facilities from being reasonably capable of being used for their intended purpose; and (b) rectification of which shall not, in the opinion of the Franchisor, substantially prejudice the use or operation of the Hotel or the saleability, letting or use of the Facilities.
Money Laundering Laws	all Legal Requirements relating to money laundering.
Non-Disturbance Deed	a non-disturbance deed in the Franchisor's then current form.
Operating Supplies and Equipment	operating supplies and equipment of the Hotel as determined pursuant to the Franchisor's then applicable Standards, which excludes EQT.
OTA	final consumer facing websites or applications operated by online travel agents with whom the Accor Group enters, from time to time, into distribution agreements and which are granted access to CRS and/or D-Edge and include, as at the Effective Date, strategic accounts such as Expedia, Booking.com, HRS, etc.
Paid Search	online advertising (SEA) campaigns for Accor Group Websites and applications which the Accor Group may from time to time operate for distribution purposes.
PCI DSS	the payment card industry data security standard established by the Council from time to time.
Personal Data	any information relating to an identified or identifiable natural person. An "identifiable natural person" is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.
PIP or Property Improvement Plan	the property improvement plan for the Hotel to be renovated to the Standards, and attached as Schedule 5.
PMS	the Hotel's property management system platform enabling the Hotel to manage front-office capabilities such as booking reservations, guest check-in/check-out, room assignment, managing room rates, and billing.
POS	the point of sales system or food and beverage and stock management, as prescribed by the Franchisor from time to time.
Practical Completion	the date when: (a) the Hotel (including all Facilities) has been completed; and (b) all FF&E have been installed, in accordance with: (i) the Approved Plans and Specifications; (ii) the Standards, (iii) the PIP; (iv) the HCSA; and (v) all Legal Requirements, and the Hotel is ready to render services to guests on a fully operational basis (excluding Minor Defects).
Process or Processing	includes collection, use, disclosure and processing.
Promotional Materials	publicly issued matter which, in accordance with the terms of this Agreement, may be released by the Franchisee in relation to the Hotel (including materials which use the Proprietary Rights).
Proprietary Rights	includes:

	(a) the Trade Mark; (b) the Accor Group Websites; (c) the Brand and the "Accor" brand (and any changes, updates or amendments thereto) and names combining its use; (d) the Hotel Name; (e) any registered or unregistered patent, copyright, trade mark or service mark, trade name, brand name, business name, combined name, design, pattern, logo, device and the like, any application to register any of the aforementioned rights; and (f) any other intellectual or industrial property right of any nature whatsoever, connected with or used in the System or subsequently adopted by the Franchisor or for use in connection with the System.
Purchases	purchases of goods, supplies and/or services.
Rate of Interest	the rate percent per annum which is 2.0% above the overdraft rate charged from time to time by The Bank of Korea but in any event not less than 9.0% per annum.
Relevant Parties	each Party's respective principals, owners, officers, directors, employees, Affiliates or any third party acting on their behalf or for their benefit.
Renewal Term	as defined in the Schedule of Commercial Terms.
Reservation Fees	as defined in the Schedule of Commercial Terms.
Sanctions Laws	any Legal Requirement made under, by or in respect of: (a) United Nations Security Council Resolutions; (b) the US Department of the Treasury's Office of Foreign Assets Control (OFAC) List of Specially Designated Nationals and Other Blocked Persons; (c) the US Department of State's lists of persons subject to non-proliferation sanctions; (d) the European Union Financial Sanctions List; (e) persons and entities subject to Special Measures regulations under Section 311 of the USA PATRIOT Act and the Bank Secrecy Act; (f) any sanction legislation or regulations in the United Kingdom including His Majesty's Treasury in the United Kingdom; (g) any entity that the Accor Group is restricted from entering into any agreement with; (h) any entity that the Accor Group is prohibited or restricted from concluding transactions with including through: (i) asset freezing, trade embargos or any other similar prohibitions; (ii) extraterritorial sanctions; and/or (iii) payment restrictions which would prevent the Franchisor or its Affiliates from: (A) receiving payments in accordance with this Agreement; and/or (B) performing its obligations under this Agreement; or (i) any relevant restricted party listings maintained by the jurisdictions in which either Party or the Hotel is located, (and each as amended, supplemented or substituted from time to time).
Sanctioned Person(s)	a person or entity designated under any Sanctions Laws.
Schedule of Commercial Terms	the table identified as the schedule of commercial terms in this Agreement.
Security Interest	a mortgage, pledge, lien, charge, encumbrance, assignment by way of security or other arrangement having similar effect as a grant of security.
SIAC	Singapore International Arbitration Centre
SIMC	Singapore International Mediation Centre

Software	any software provided or specified by the Franchisor for use in the operation of the Hotel, (including bespoke software and recommended third party software).
Standards	the standards (including all manuals, policies and procedures) adopted from time to time by the Franchisor as appropriate and fit for the purpose of Brand Hotels. The Standards include the: (a) the Accor Group Policies; (b) Data Protection Principles; (c) IT Standards; (d) insurance standards; (e) procurement standards; (f) the applicable standards that apply to the Loyalty Programs, from time to time; (g) fire, life and safety standards; and (h) standards, drawings and designs relating to the construction, fitting out, equipment and operation of a Brand Hotel, as well as the equipment and technical specifications set out in the various manuals issued from time to time by the Accor Group. During the Term, copies of the Standards shall be delivered, from time to time, to the Franchisee. Delivery may be via an access to a Accor Group Website.
System	(collectively and individually) the Concept, the Standards and the Proprietary Rights, as modified, augmented, or improved by Accor Group from time to time.
Term	as defined in the Schedule of Commercial Terms.
Termination Date	as defined in the Schedule of Commercial Terms.
Territory	Republic of Korea.
Total Rooms Revenue	has the meaning given to it in the Uniform System.
Trade Mark	the trade mark and logo for the Brand, together with all correlative rights and registrations as may be obtained from time to time by Accor Group.
Transfer	any transfer of any legal or equitable interest including any transfer, sale, conveyance, assignment, lease, licence, declaration of trust or other disposition and any other giving up of possession, other than in the ordinary course of business, but does not include a lease or licence, in the ordinary course of business, of concessions at the Hotel.
Uniform System	the Uniform System of Accounts for the Lodging Industry most recently published from time to time by the Hospitality Financial and Technology Professionals (HFTP®) (or its successors and assigns with respect to such publishing rights).
VAT	value-added tax or goods and services tax or any other similar tax.
Withholding	any deduction or withholding of tax in accordance with any Legal Requirement.
Works	the works to be carried out by the Franchisee for the design, construction/renovation, refurbishment, fitting out and equipping of the Hotel in accordance with: (a) the Facilities; (b) the Approved Plans and Specifications; (c) the PIP; (d) the Standards; (e) the Legal Requirements; and (f) the HCSA.
Works Commencement Date	the date that the Works (other than preliminary works) has substantially commenced.

SCHEDULE 2

SPECIAL TERMS

1. Restraint of Trade

1.1

(a) As and from the Effective Date and until the seventh (7th) anniversary of the Effective Date, neither the Franchisor nor its Affiliates may operate or franchise another hotel under the Restrained Brand within a radius of 1.2 kilometres from the front door of the Hotel as shown on the map attached to this Agreement as Schedule 2A.1 ("**Initial Restricted Area**"). In the event of any inconsistency between the description and the map, the description shall prevail.

(b) As and from date following the seventh (7th) anniversary of the Effective Date and until the twelfth (12th) anniversary of the Effective Date, neither the Franchisor nor its Affiliates may operate or franchise another hotel under the Restrained Brand within a radius of 1 kilometre from the front door of the Hotel as shown on the map attached to this Agreement as Schedule 2A.2 ("**Subsequent Restricted Area**"). In the event of any inconsistency between the description and the map, the description shall prevail.

(c) As and from date following the twelfth (12th) anniversary of the Effective Date and until the fifteenth (15th) anniversary of the Effective Date, neither the Franchisor nor its Affiliates may operate or franchise another hotel under the Restrained Brand within a radius of 0.7 kilometres from the front door of the Hotel as shown on the map attached to this Agreement as Schedule 2A.3 ("**Final Restricted Area**"). In the event of any inconsistency between the description and the map, the description shall prevail.

1.2 This Special Term 1 will cease to apply:

(a) from the date the Hotel is Seriously Damaged;

(b) immediately should any of the Milestone Dates not be met; and/or

(c) as and from the Termination Date.

1.3 For the purposes of this Special Term 1, "Restrained Brand" means any property branded as "**Mercure**" operating as a member of the System. The term "Restrained Brand" shall not include any other brands from time to time operated by the Franchisor or its Affiliates in the Territory and expressly excludes any other sub-brand, labels, derivative or adjunct brand of "**Mercure**". The Franchisee agrees and acknowledges that the Restrained Brand is a hotel offering services and amenities at levels appropriate for such hotels in their respective locations while targeting a specific class of customers, offering unique products and services, and operating under a distinct business manner and method. The Franchisee acknowledges that the Franchisor operates other brands and may acquire and operate other brands in the future, which may target a different class of customers, offer their own unique products and services different from the products and services of the Restrained Brand, and operate under a different business manner and method ("**Accor Group Brands**"). The Franchisee further acknowledges that the Accor Group Brands are characterized by features that can be distinguished from the Restrained Brand, and therefore, does not or may trivially affect the business of the Hotel within the Initial Restricted Area, Subsequent Restricted Area or Final Restricted Area, as applicable.

1.4 This restraint of trade:

(a) shall not prevent the Franchisor or its Affiliates from negotiating and entering into a franchise agreement, management agreement, lease or other arrangement for a Brand Hotel to be located within the Initial Restricted Area, provided such hotel opens to the public after the end of the period contemplated in Special Term 1.1(a), subject to restrictions under Special Term 1.1(b) and Special Term 1.1(c);

(b) shall not prevent the Franchisor or its Affiliates from negotiating and entering into a franchise agreement, management agreement, lease or other arrangement for a Brand Hotel to be located

within the Subsequent Restricted Area, provided such hotel opens to the public after the end of the period contemplated in Special Term 1.1(b), subject to restrictions under Special Term 1.1(c);

(c) shall not prevent the Franchisor or its Affiliates from negotiating and entering into a franchise agreement, management agreement, lease or other arrangement for a Brand Hotel to be located within the Final Restricted Area, provided such hotel opens to the public after the end of the period contemplated in Special Term 1.1(c);

(d) does not apply to any non-hotel product, including, serviced apartments, residential condominiums (including condo-hotels) or private villa developments, timeshare, interval or fractional ownership projects; and

(e) does not apply to the "Grand Mercure" brand.

1.5 For the purposes of this Special Term 1, "Seriously Damaged" means any event where the continued operation of the Hotel has become, in the opinion of Franchisor or Franchisee, unreasonable or imprudent by reason of a Force Majeure Event or other disabling event.

2. Excluded Liabilities

2.1 In this Special Term 2, references to the Hotel shall also refer to the hotel situated on the Land which was operated prior to the Commencement Date under the name of "Hotel U5" and its business.

2.2 The Franchisee represents and warrants that:

(a) it has purchased the Hotel and Land on a vacant possession; and

(b) neither it nor the prior owner of the Hotel and Land has any contractual obligations with any third party operator or franchisor in relation to operation or management of the Hotel which would restrict the Franchisee from entering into this Agreement with the Franchisor.

2.3 The Franchisee warrants that by the Milestone Date applicable to the Works Commencement Date:

(a) all Hotel websites and related links shall be off-line;

(b) all distribution channels and booking channels including existing contracts with online travel agencies shall be terminated;

(c) all obligations to all existing suppliers and/or any other external partners including all local authorities shall have been fulfilled; and

(d) all agreements, contractual arrangements and obligations with any third parties, written or oral, in relation to or in connection with the Hotel (excluding the Management Agreement) shall be terminated, including but not limited to:

(i) management agreements, franchise agreements, and any other ancillary or related agreements in relation to operation or management of the Hotel;

(ii) contracts for goods and services, leases for spaces or equipment and concession agreements in relation to the Hotel;

(iii) travel agency or rate commitment contracts or offers for specified rates; and

(iv) all existing bookings for guestrooms or events at the Hotel,

("**Prior Contracts**"),

(collectively, the "**Closure Actions**").

2.4 The Franchisee shall be solely responsible for any responsibilities, duties, obligations, liabilities, losses, damages, claims, fines, penalties, costs, expenses, fees and demands of any nature, arising out of or in connection with:

(a) any action, omission, occurrence or event happening in or about the Land, the Hotel, or the construction, repair, maintenance or the business of the Hotel before the Commencement Date;

(b) the operation of the Hotel and its business before the Commencement Date;

(c) the Closure Actions (including all costs and expenses);

(d) all pending or threatened causes of action, claims or charges, or any events that could reasonably form the basis thereof, asserted in any judicial, arbitration, administrative or

similar proceedings (including bankruptcy, insolvency or other debtor/creditor proceedings) or insurance claim relating to the hotel situated on the Land or the operation of the said hotel and its business ("**Litigation**"); and

(e) the Franchisee or its agents, consultants or contractors complying with this Special Term 2,

(all of the foregoing, collectively referred to as "**Excluded Liabilities**", even if such Excluded Liabilities accrue or crystallise on or after the Commencement Date).

2.5 The Franchisee will bear, from its own funds, all liabilities, losses, damages, claims, costs, expenses, fees and demands of any nature arising out of or in connection with any Excluded Liabilities. The Franchisee shall indemnify Franchisor Indemnified Parties from and against all losses, liabilities, damages, claims, fines, penalties, costs, expenses (including reasonable costs of lawyers and experts), fees and demands of any nature (including those by any suppliers or vendors) that Franchisor Indemnified Parties shall or may suffer or become liable for, arising out of or in connection with:

(a) the Excluded Liabilities; and/or

(b) the negotiations between the Franchisee and Franchisor Indemnified Parties regarding the rebranding of the Hotel.

2.6 Within thirty (30) days after the Effective Date, the Franchisee shall provide to the Franchisor a full and complete list of all Excluded Liabilities, with such details as the Franchisor may require.

2.7 The Franchisee represents and warrants that:

(a) it is not in default;

(b) to its knowledge, no other person is in default; and

(c) no events have occurred that, with the giving of notice or passage of time or both, would become a default,

under any Prior Contracts.

2.8 The Franchisee will notify the Franchisor promptly of all pending or threatened Litigation that arises after the Effective Date.

3. Termination Without Cause

3.1 The provisions of Special Term 3.2 to Special Term 3.4 only apply in respect of a termination of this Agreement in accordance with the below provisions after the expiry of the sixth (6th) Fiscal Year.

3.2 At any time after the expiry of the sixth (6th) Fiscal Year, the Franchisee may give at least ninety (90) days' prior written irrevocable notice to the Franchisor of its intention to terminate this Agreement (such notice, the "**Termination Notice**"). Such termination shall take effect from the latest of the date:

(a) of the payment of all monies due and payable by the Franchisee to the Franchisor and its Affiliates under this Agreement and the payment of all monies owing by the Franchisee to the Franchisor and its Affiliates relating to the Hotel;

(b) which is ninety (90) days after the Termination Notice is given to the Franchisor; and

(c) of payment by the Franchisee to the Franchisor of a termination fee as determined in accordance with the applicable formula set out in Special Term 3.3 ("**Termination Fee**").

3.3 In the event that the Franchisor receives the Termination Notice at any time during the period commencing on the first day of the seventh (7th) Fiscal Year, the Termination Fee shall be calculated as follows:

$$X = (A \div 12 \times 2.3\%) \times B$$

Where:

(a) "X" is the Termination Fee;

(b) "A" is an amount equal to the Total Rooms Revenue in respect of the 12-month period ending on the last day of the month immediately preceding the month during which the Franchisor received the Termination Notice; and

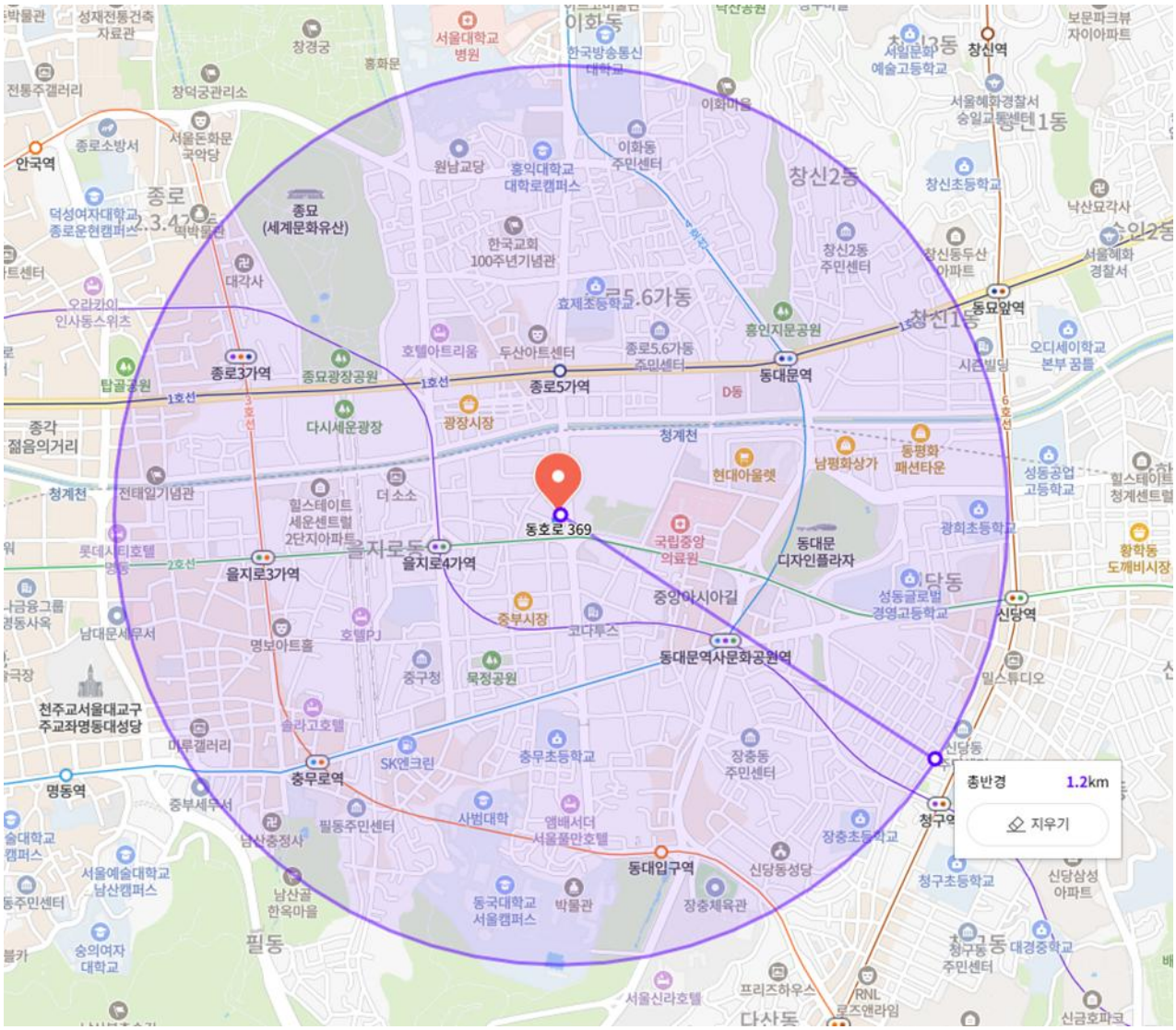
(c) "B" is the aggregate number of months (or any part thereof) remaining in the Initial Term (had this Agreement not been terminated) from the date of receipt by the Franchisor of the Termination Notice. For the avoidance of doubt, any part month shall be counted as a full month for the purpose of calculating the Termination Fee.

3.4 The Franchisor will not be required to vacate the Hotel until it has received payment of all amounts required to be paid by the Franchisee to the Franchisor and its Affiliates under this Agreement.

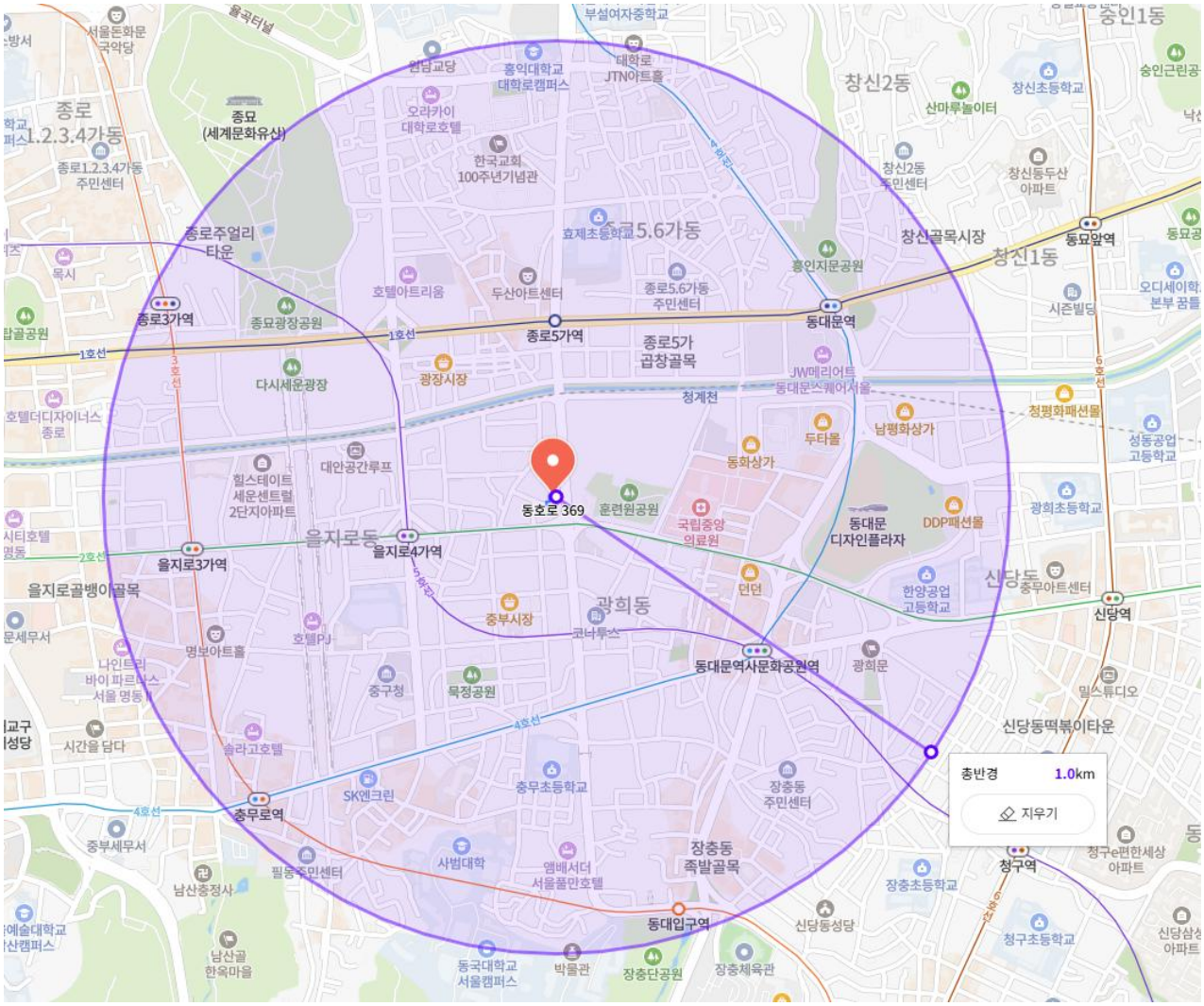
SCHEDULE 2A

RESTRICTED AREAS

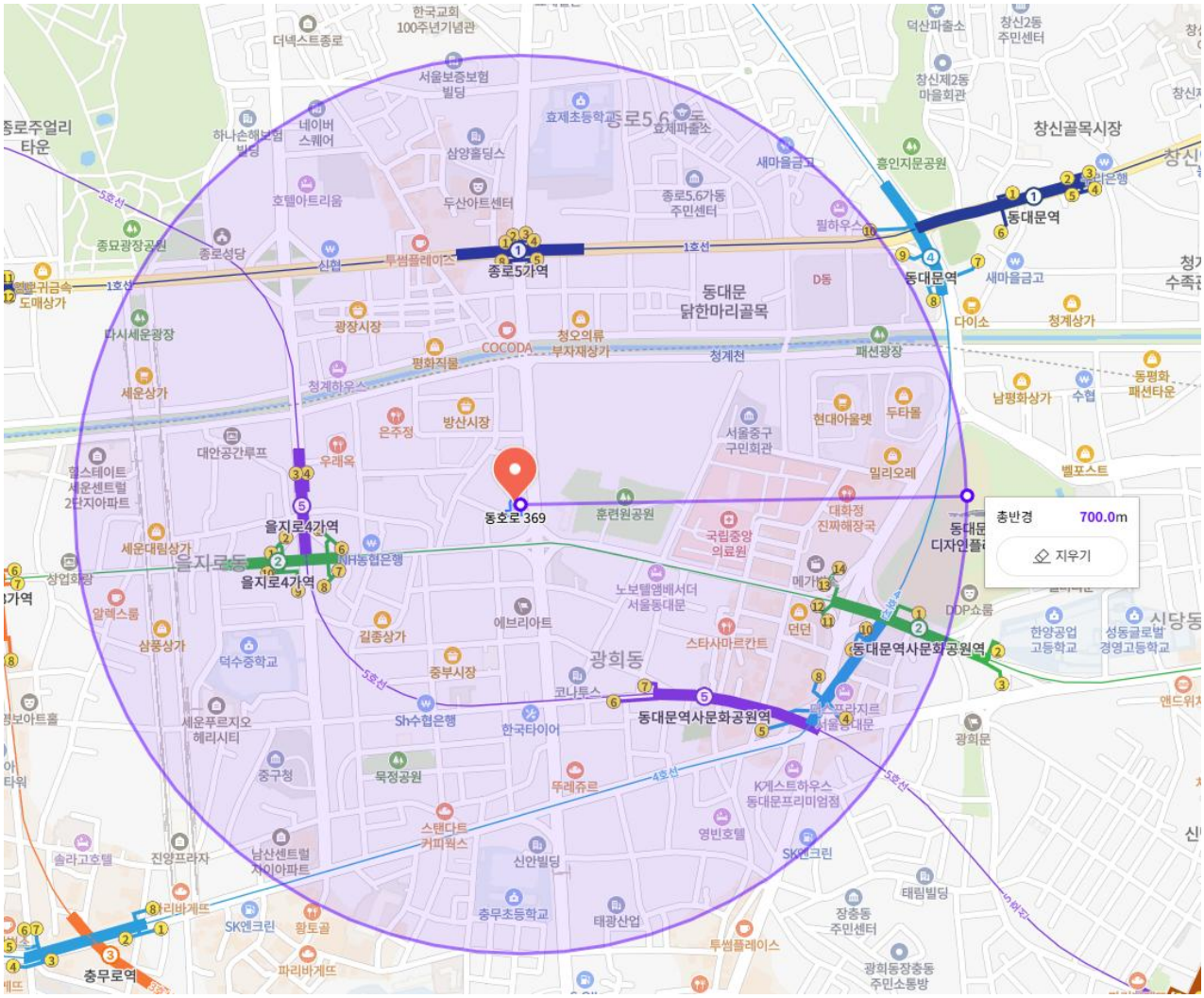
1. INITIAL RESTRICTED AREA



2. SUBSEQUENT RESTRICTED AREA



3. FINAL RESTRICTED AREA



SCHEDULE 3A

DISTRIBUTION

1. Reservations

(a) The Franchisee acknowledges and agrees that reservations may be made in the CRS through different distribution channels and that such reservations shall attract third party fees and commissions in addition to the Reservation Fees payable by the Franchisee.

(b) As at the Effective Date, the applicable distribution channels are:
- (i) the Accor Group Websites;
- (ii) the Applications;
- (iii) the Global Distribution Systems (or GDS);
- (iv) the Internet Distribution Systems (or IDS);
- (v) the Call Centres (including reservations directed from Cluster Service & Overflow);
- (vi) Group Booking; and
- (vii) at Hotel level via the PMS of the Hotel or other applicable systems.

(c) The Franchisee acknowledges and agrees that rooms at the Hotel shall not be sold outside of the CRS.

(d) Reservations made by the Hotel for itself via the Hotel PMS are not subject to Reservation Fees.

2. Reservation Websites

(a) The Franchisee is aware of the existence of the Accor Group Websites.

(b) The Franchisee shall not:
- (i) integrate into any other website such formatted information or any of the Proprietary Rights; and
- (ii) create or operate a website for the Hotel,

without the prior written approval of the Franchisor (which may be withheld in the Franchisor's sole discretion).

(c) If approval under paragraph 2(b) is granted, the Franchisee shall:
- (i) include a link to the relevant Accor Group Websites;
- (ii) not include any booking system on such website created or operated by the Franchisee; and
- (iii) sign all documents required by the Franchisor to transfer such domain name (where it incorporates the Proprietary Rights) to the Franchisor or its nominee on demand at any time.

3. AccorConnect

(a) The Franchisee agrees that the Hotel is:
- (i) equipped with the required hardware and software necessary to connect the Hotel to AccorConnect and to any other connectivity system as required by the Franchisor for the Hotel;
- (ii) compliant at all times with the IT Standards; and
- (iii) equipped with the PMS prescribed by the Franchisor.

(b) The Franchisee shall purchase and install all such hardware, software and local internet connection, as are necessary to connect the Hotel to AccorConnect and to any other connectivity system as required by the Franchisor for the Hotel.

(c) The Franchisee agrees that, throughout the Term, the Franchisee shall not maintain or use or permit in connection with the Hotel any toll-free or similar telephone line or communications device for making reservations independently from the CRS or from the hotel direct telephone line.

(d) The Franchisee agrees that, throughout the Term, the telephone line or similar telephone number or communications device for making reservations provided by the Franchisor or its Affiliates is the only telephone reservations line or communications device for the Hotel.

(e) The charges for such connection and services are provided in the IT Standards (and/or as notified to the Franchisee from time to time).

(f) The Franchisee agrees to comply with all other requirements in relation to AccorConnect and any other connectivity system as required by the Franchisor for the Hotel.

4. Paid Search and Metasearch

The Franchisee acknowledges and agrees that:

(a) Paid Search and Metasearch may channel or facilitate the acquisition of reservations to CRS; and

(b) bookings made as a result of Paid Search and Metasearch attract a separate and additional fee payable by the Franchisee as set out in the Schedule of Commercial Terms. These fees are in addition to the Reservation Fees payable in respect of Accor Group Websites and applications which the Accor Group may from time to time operate for distribution purposes.

5. Payment of Commissions

(a) The Franchisee will put in place an automatic debit arrangement to facilitate payment of all amounts due by the Franchisee for all travel agency commissions and associated fees.

(b) The Franchisor may, from time to time, require the Franchisee to authorise payment for all travel agency commissions through a centralised system managed by the Accor Group (or a third party appointed by the Accor Group (or any replacement thereof)).

(c) Subject to paragraph 5(b), such system (including through a third party) shall invoice and collect from each participating hotel the relevant fees (which shall be consistent with the fees charged to other Brand Hotels in the Territory), and then pay travel agents in a global lump sum payment.

(d) The Franchisee acknowledges that a breach by the Franchisee of its obligations to pay any travel commission when due shall cause irreparable damage to the Franchisor and the Accor Group.

6. CRS

(a) The Franchisee acknowledges and agrees that:
  (i) the Hotel's room inventory and room rates and the required information about the Hotel is loaded and maintained as current in CRS;
  (ii) the Hotel is exclusively distributed through CRS, unless otherwise authorised by the Franchisor; and
  (iii) the Franchisor may, at its own discretion, grant third-party distributors access to CRS.

(b) If the Franchisor grants third-party distributors access to CRS:
  (i) any commission payable to such third-party distributor is in addition to the Reservation Fees; and
  (ii) if a third party distributor is connected to CRS the Hotel is distributed through the CRS.

(c) The Franchisee acknowledges and agrees that:
  (i) the CRS is interfaced with an increasing number of technological intermediaries and distributors;
  (ii) there may be discrepancies between the display of availability and prices in CRS and in the distributor's or the intermediary's system (the intermediary is neither managed nor controlled by the Accor Group); and
  (iii) the Franchisor and its Affiliates shall not be held liable for any damages suffered as a result of any such discrepancies.

7. PMS

(a) The Franchisee agrees that the Hotel shall have a PMS approved by Franchisor taking into account the Brand.

(b) The PMS shall be provided by a third party to the Franchisee.

(c) Appropriate hardware shall be required to ensure that the Hotel and network are capable of running the PMS.

(d) The costs of the PMS shall be borne by Franchisee.

8. Revenue Management System

The Franchisee agrees that the Hotel shall have a revenue management system approved by the Franchisor and, if recommended by the Franchisor, the Franchisee may use the revenue management services provided by the Franchisor, the costs of which will be notified to the Franchisee from time to time.

9. Customer Relationship Management

(a) The Franchisee agrees that the Hotel shall use the approved customer relationship management system prescribed by the Franchisor from time to time.

(b) All fees for such customer relationship management system shall be borne by the Franchisee – including the fee for connection for key sales and management personnel to the sales systems

(including customer relationship management tools and sales contracting tools) provided by the Accor Group from time to time.

10. POS

The Franchisee agrees that the Hotel shall have a POS system as approved by the Franchisor.

11. Standards Audit

(a) The Franchisee agrees that the Franchisor or its representatives may, once every Fiscal Year, carry out an audit of the Hotel's systems to ensure compliance with Accor Group Policies, including policies relating to the security of the network.

(b) The cost of such audit shall be borne by the Franchisee. The Franchisee shall implement all recommendations following any such audit.

12. Competitive Benchmarking Reporting

The Hotel shall subscribe for the competitive benchmarking reporting services nominated by the Franchisor and supplied by an independent third party market research supplier. All costs of such reporting services shall be borne by the Franchisee.

13. General

The Franchisee acknowledges and agrees that the:

(a) name and/or content of; and

(b) fees for,

the services and/or distributions channels (or related tools) as described in Schedule 3A and Schedule 3B may change, be updated, be varied or replaced from time to time, depending on environmental and technical evolutions.

14. Additional Provisions

All fees and charges payable to third parties (whether directly or indirectly through the Franchisor or its Affiliates) including without limitation metasearch fees, are in addition to the Reservation Fees payable to the Franchisor and its Affiliates.

15. Meetings and Events Software

The Hotel shall subscribe for a SaaS licence for meetings and events booking as prescribed by the Franchisor. Any fee associated therewith shall be borne by the Franchisee.

SCHEDULE 3B[1]
ACCORCONNECT

Part A: Fees

IT Design and Project Management Fee	The IT design and project management fee for the installation of Accor Group Hotels Worldwide Area Network (AccorConnect) infrastructure and systems and which includes: • 4 man-days for AccorConnect infrastructure setup and installation; • 1 man-day for CRS and PMS integration and setup; • 2 man-days for iPMS best practices onsite training; and • 2 man-days for Hotel IT Manager online training. Travel expense will be borne by the Franchisee in addition **IT Design and Project Management Fee:** • Hotel has less than 200 guest rooms - USD20,000. • Hotel has 200 or between 200 and 300 guest rooms - USD25,000. • Hotel has 300 or more guest rooms - USD30,000. Plus all reimbursable expenses Accor referenced hardware and software costs are additional and purchased by the Franchisee. The Franchisor's preferred supplier (if any) will be made available to the Franchisee. **Access:** As at the Effective Date, AccorConnect provides access to the Applications. Third party telecommunications and software licenses cost are additional and such services must be provided by the Franchisee from third parties. The Franchisor's preferred suppliers (if any) will be made available to the Franchisee.
AccorConnect	0.22% of Total Rooms Revenue – capped at Euro 20,000 per Fiscal Year.
O365 Messaging Services	Mandatory charges, which will be notified to the Franchisee from time to time, relating to O365 e-mail set-up and annual subscription.
Security and Compliance (PCI DSS)	Mandatory charges, which will be notified to the Franchisee from time to time, relating to PCI DSS compliance, PCI DSS assistance, iPMS Accorshell specification, testing, integration and administration.
AccorSecure	Mandatory charges, which will be notified to the Franchisee from time to time, relating to the following services: • monitoring and management of the Hotel firewall equipment, necessary to ensure the Hotel network security service (Wi-fi, WAN, LAN); • blocking common malicious software and coordination with editor, in case of new antiviruses; • blocking connections to dangerous websites; • enabling identification of advanced attacks missed by traditional security solutions. Daily review of IT systems logs to check for abnormal comportment of Hotel devices to assist with PCI DSS compliance; • performing Hotel network vulnerability scans, as required by PCI DSS; and • providing a team of security experts available to assist defining the appropriate security level for the Hotel and assist in case of breach or attack.
IT Assistance Fee	Mandatory charges which will be notified to the Franchisee from time to time.
Systems Integration & Configuration	Mandatory charges relating to systems integration & configuration which will be notified to the Franchisee from time to time, including the integration and configuration of the following systems:

[1] The amounts stated in this table are exclusive of VAT and Franchisee must pay any applicable VAT.

	• PMS; • POS system; and • accounting system.
Training and On-Site Support & Service	Various mandatory training services and on-site support, the cost of which will be notified to the Franchisee from time to time.
Device & User Management Fee	Mandatory charges which will be notified to the Franchisee from time to time, relating to end user device connection to the Franchisor cloud.

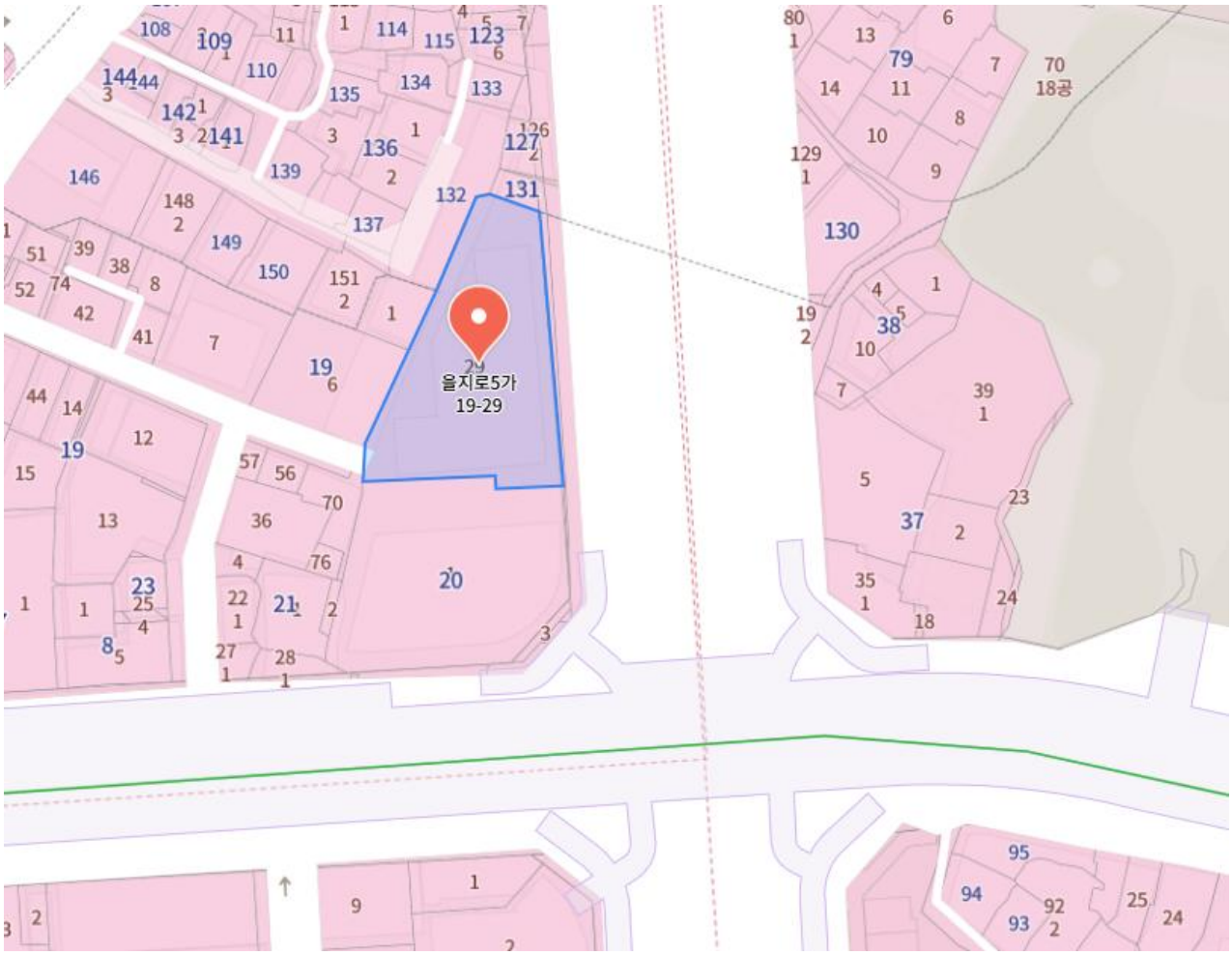
Part B: IT Services

CONNECTIVITY PROVIDED	This system allows the Hotel to access to various applications, including: • application(s) designated by the Accor Group that allows searches and reservations to be made and provides access to availability and prices; • direct update of rate, availability and sales conditions; • retrieval of reservations; • sales commission management; • CRS Reporting and other reporting tools; • Accor Group worldwide intranet and communication tools; • all reservations in CRS transferred automatically to PMS; • automatic pricing update from CRS to PMS – all rates changed in CRS automatically updated into PMS; • automatic planning from PMS to CRS – Hotel front door closes automatically in CRS if Hotel is fully booked; and • interface RMS/CRS for automatic rate & planning loading following recommendations from the Franchisor.
APPLICATIONS PROVIDED BY FRANCHISOR	During the Term, subject to compliance with the terms and conditions of this Agreement, the Franchisee is granted a limited and non-exclusive licence to use the Applications via connection through AccorConnect. The provision of the Applications is included (excluding the maintenance fees) in the fees set out for use of AccorConnect. Access to AccorConnect and to the messaging services, the use of the different services, other than specifically set out in this Part B may be subject to additional costs, which will be notified in advance to the Franchisee. The Franchisee acknowledges and agrees that: • all Applications shall remain the sole property of the Franchisor or the provider thereof; • the Franchisee shall only have a right to use the Applications in return for which the Franchisee shall pay the fees as defined in this Agreement; • it has no right to transfer or assign its limited and non-exclusive right of use (except as permitted by clause 18 of this Agreement); • it shall not, and shall not permit third parties, to use any Applications for any purpose other than for the benefit of the Hotel; • it shall not modify or copy the Applications and shall take all the necessary steps in order to ensure that the Applications are not copied or modified; and • it shall not and shall not instruct the Hotel Employees to alter or change the Applications or in any way use the Applications in an unauthorised manner or for any unauthorised purpose.
USE OF ACCORCONNECT	If the Hotel experiences technical difficulties with AccorConnect, the Franchisee agrees that the technical assistance department appointed by the Franchisor shall be contacted and that no other party shall assist the Hotel without approval from the Franchisor.

	The Franchisee acknowledges and agrees that as a user of AccorConnect then at its cost and at all times: • it shall comply with any and all policies, guidelines, practices and requirements of the Accor Group (or any member of it) from time to time in relation to AccorConnect; • it is responsible for the use of the Applications by the Hotel and for the information available through AccorConnect; • it shall maintain a backup of the information relating to the Hotel on AccorConnect; • it agrees that it uses AccorConnect at its own risk and cost and the Franchisor shall not be responsible for any down-time or loss of information, or business to the extent arising from AccorConnect, the Applications or equipment going off-line, functioning improperly or ceasing to work and such circumstances shall not constitute a breach of this Agreement by the Franchisor; • any documentation provided with respect to AccorConnect shall not be copied without the consent of the Franchisor and any copies shall not be removed from the Hotel; • the software and any equipment connecting the Hotel to AccorConnect shall under no circumstances be used for any purpose other than connecting to AccorConnect; • all software and equipment are purchased from licensed and authorised dealer(s) and that the Hotel shall maintain all necessary and proper licences to use on or with each separate unit; • all equipment and software are maintained and kept in good repair and condition, including entering into a contract for maintenance services with a reputable third party; • all hardware and software are upgraded so that the Hotel is operating using software versions stipulated and supported by the Franchisor from time to time; and • the Hotel Employees shall undertake such training as may be required by the Franchisor from time to time.
EQUIPMENT	• Hotel's complete network connected to Accor Group Hotels Worldwide Area Network (AccorConnect). • All components of Hotel's network (hardware including servers, Forcepoint Firewall, laptop, desktop, Wi-Fi components, gateway and software) shall comply with AccorConnect requirements and the IT Standards.
EXPENSES	The fees set out in Schedule 3A and Schedule 3B are exclusive of any reasonable travel, accommodation and meal expenses of any personnel of Accor Group or a third party supplier, and such expenses shall be borne by the Franchisee.

SCHEDULE 4

PLAN OF THE LAND



SCHEDULE 5

PROPERTY IMPROVEMENT PLAN

MERCURE
HOTELS

PIP Conversion

Proposed Mercure Dongdaemun, Seoul

Facility Summary
Number of keys: 336 Keys
Lobby Bar, ADD, Fitness, Meeting Rooms, Coin Laundry & Roof Top Terrace.

Room Size
Standard/ Deluxe : 20 – 24.5sqm

Key Upgrade Recommendations:

(The scope of work may be adjusted following hotel inspections by Accor D&TS and Operations.)

Public Areas

- **Full renovation to Reception Lobby, Lobby Bar, ADD, Meeting Rooms, Fitness, Roof Top Terrace, Coin Laundry, Public Toilets, Lift Lobbies and Lift Cars to Mercure Brand Standards.**

Guestrooms

- Full renovation to all Guestrooms including bathrooms, Guest floor lift lobbies and corridors to Mercure Brand Standards.

Exteriors

- Entry arrival to be upgraded to enhance guest entry experience in accordance to Mercure Brand Standards.

OS&E **- Replace Hotel OS&E in accordance to Mercure Brand Standards. (Subject to review of the existing stock inventory)**

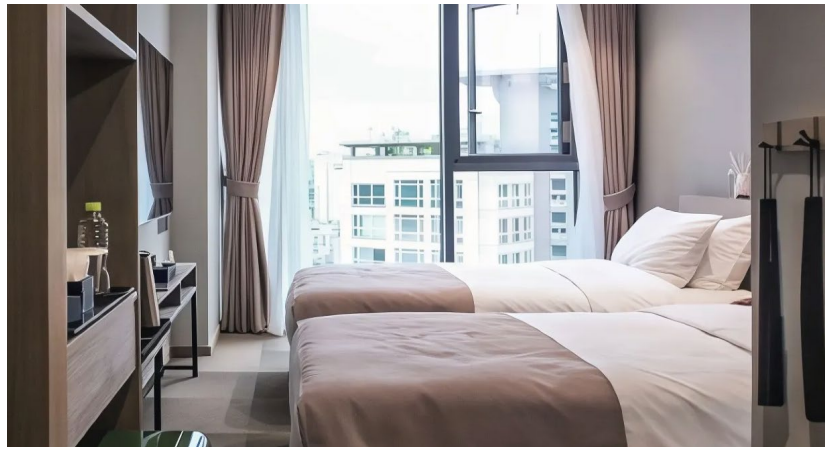
IT **- IT System to be replaced in accordance to Mercure Brand Standards.**

Signage **- Exterior and Interior signage to be replace in accordance to Mercure Brand Standards.**

MEP **- 3rd Party MEP and FLS Audit to be appointed by owner to certify local authority and hotel brand compliance.**

BOH **- BOH and carpark upgrades and adjustments. (Subject to Hotel Inspections)**

Existing Photos







Mercure Design Direction

